

In re S. Bradley Mell

No. 26-16834-EJO (Bankr. D.N.J.)

Hearing: July 16, 2026

Appendix to Opposition to Motion to Dismiss

Volume I — Petition & Procedural History

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A-3	Bankruptcy Schedules — Summary of Assets and Liabilities, Schedules A/B, D, E/F, I, J (Doc. 11)	2026-06-25
A-4	Doc. 8 — Motion to Dismiss Bankruptcy Case (Nagel Rice, LLP, on behalf of B.B.)	2026-06-25
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Tab A-1

U.S. Bankruptcy Court, D.N.J. — Docket, In re S. Bradley Mell,
No. 26-16834-EJO

Tab A-1

**U.S. Bankruptcy Court
District of New Jersey (Trenton)
Bankruptcy Petition #: 26-16834-EJO**

Assigned to: Bankruptcy Judge Eamonn James
O'Hagan
Chapter 7
Voluntary
No asset

Date filed: 06/12/2026
341 meeting: 07/29/2026
Deadline for objecting to discharge: 09/28/2026
Deadline for financial mgmt. course: 09/28/2026

Debtor

Steven Bradley Mell
PO Box 835
Far Hills, NJ 07931
SOMERSET-NJ
SSN / ITIN: xxx-xx-3379

represented by **Sari Blair Placona**
McManimon Scotland &
Baumann, LLC
75 Livingston Avenue
Suite 201
Roseland, NJ 07068
973-622-1800
Email: splacona@msbnj.com

Anthony Sodono, III
McManimon, Scotland &
Baumann, LLC
75 Livingston Avenue
Roseland, NJ 07068
973-622-1800
Fax : 973-681-7233
Email: asodono@msbnj.com

Trustee

Bunce Atkinson
Bunce D. Atkinson, Chapter 7 Trustee
1011 Highway 71
Suite 200
Spring Lake, NJ 07762
732-449-0525

U.S. Trustee

U.S. Trustee
US Dept of Justice
Office of the US Trustee
One Newark Center Ste 2100
Newark, NJ 07102
(973) 645-3014

Filing Date	#	Docket Text
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06/12/2026	<u>1</u> (10 pgs)	Chapter 7 Voluntary Petition Filed by Anthony Sodono III on behalf of Steven Bradley Mell. (Sodono, Anthony) (Entered: 06/12/2026)
06/12/2026		Receipt of filing fee for Voluntary Petition (Chapter 7)(<u>26-16834</u>) [misc,volp7a] (338.00) Filing Fee. Receipt number A49709969, fee amount \$ 338.00. (re: Doc# <u>1</u>) (U.S. Treasury) (Entered: 06/12/2026)
06/12/2026	<u>2</u> (1 pg)	Certificate of Credit Counseling filed by Anthony Sodono III on behalf of Steven Bradley Mell. (Sodono, Anthony) (Entered: 06/12/2026)
06/12/2026	<u>3</u> (1 pg)	Notice of Appearance and Request for Service of Notice filed by Sari Blair Placona on behalf of Steven Bradley Mell. (Placona, Sari) (Entered: 06/12/2026)
06/13/2026	<u>4</u> (3 pgs)	Notice of Chapter 7 Bankruptcy Case, Meeting of Creditors and Notice of Appointment of Interim Trustee Bunce Atkinson with 341(a) meeting to be held on 7/29/2026 at 09:00 AM via Zoom - Atkinson: join.zoom.us Meeting ID 262 187 5111, Passcode 2806110840, or call 1-848-288-2510. Financial Management Course Certificate Due 9/28/2026. Last day to oppose discharge or dischargeability is 9/28/2026. (Entered: 06/13/2026)
06/15/2026	<u>5</u> (2 pgs)	Order to Show Cause Why Case Should Not be Dismissed for re: Failure to File Missing Documents. Missing Documents: Summary of Assets/Liabilities and Stat Info - Individuals, Declaration About An Individuals Schedule, Statement of Financial Affairs For Individuals, Atty Disclosure Statement, Statement of Your Current Monthly Income (122A-1), Means Test Calculation (122A-2) - If Applicable, Schedules A/B,C,D,E/F,G,H,I,J. Service of notice of the entry of this order pursuant to Rule 9022 was made on the appropriate parties. See BNC Certificate of Notice. Signed on 6/15/2026. Hearing scheduled for 7/16/2026 at 11:00 AM, Zoom-Judge O'Hagan: join.zoom.us Meeting ID 160 291 3576, Passcode 234642, or 1-646-828-7666.. (hwn) (Entered: 06/15/2026)
06/15/2026		Remark - add street address 51 Stevens Ln, Far Hills, NJ 07931. (hwn) (Entered: 06/15/2026)
06/17/2026	<u>6</u> (5 pgs)	BNC Certificate of Notice - Meeting of Creditors. No. of Notices: 16. Notice Date 06/17/2026. (Admin.) (Entered: 06/18/2026)
06/17/2026	<u>7</u> (4 pgs)	BNC Certificate of Notice - Order No. of Notices: 1. Notice Date 06/17/2026. (Admin.) (Entered: 06/18/2026)
06/23/2026	<u>8</u> (147 pgs; 6 docs)	Motion to dismiss case for other reasons re:Lack of Good Faith Filed by Bruce H. Nagel on behalf of B.B. B.B.. Hearing scheduled for 7/16/2026 at 10:00 AM, EJO - Courtroom 2, Trenton.. (Attachments: # <u>1</u> Brief # <u>2</u> Certification # <u>3</u> Proposed Order # <u>4</u> Certificate of Service) (Nagel, Bruce) (Entered: 06/23/2026)

06/23/2026	9 (1 pg)	Notice of Appearance and Request for Service of Notice filed by Bruce H. Nagel on behalf of B.B. B.B.. (Nagel, Bruce) (Entered: 06/23/2026)
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PACER Service Center			
Transaction Receipt			
06/24/2026 18:19:21			
PACER Login:	Stevemellbbli	Client Code:	
Description:	Docket Report	Search Criteria:	26-16834-EJO Fil or Ent: filed Doc From: 0 Doc To: 99999999 Term: included Format: html Page counts for documents: included
Billable Pages:	2	Cost:	0.20

Tab A-2

Notice of Filing of Voluntary Petition Under Chapter 7 and
Imposition of Automatic Stay

Tab A-2

Steven Bradley Mell
P.O. Box 835
Far Hills, NJ 07931

Plaintiff Pro Se

**SUPERIOR COURT OF NEW JERSEY
LAW DIVISION: ESSEX COUNTY**

B.B.,	)	Docket No. ESX-L-007200-19
	)	
	)	
Plaintiff;	)	
vs.	)	
	)	<i>NOTICE OF FILING OF VOLUNTARY</i>
	)	<i>PETITION UNDER</i>
S. BRADLEY MELL, et al.,	)	<i>CHAPTER 7 OF THE UNITED</i>
	)	<i>STATES BANKRUPTCY CODE</i>
Defendants,	)	<i>AND IMPOSITION OF THE</i>
	)	<i>AUTOMATIC STAY</i>
	)	

TO: The Honorable Court, the Clerk of the Superior Court of New Jersey, Law Division, Essex County, and All Counsel of Record:

PLEASE TAKE NOTICE that, on June 12, 2026, Defendant and Third-Party Plaintiff S. Bradley Mell filed a voluntary petition for relief under Chapter 7 of Title 11 of the United States Code in the United States Bankruptcy Court for the District of New Jersey, Case No. CA - 26-16834 . A true and accurate copy of the Notice of Case Filing issued by the United States Bankruptcy Court is annexed hereto as Exhibit A and a true and correct copy of the Automatic Stay order is annexed hereto as Exhibit B.

PLEASE TAKE FURTHER NOTICE that, pursuant to 11 U.S.C. § 362(a), the filing of the petition operates as an automatic stay of the commencement or continuation of all judicial

proceedings against the debtor. The stay arises by operation of federal law immediately upon the filing of the petition, requires no further order of any court, and is binding upon this Court and all parties pursuant to the Supremacy Clause of the United States Constitution. All proceedings in the above-captioned matter must be stayed accordingly.

Point of Contact for Bankruptcy Matters.

All inquiries concerning the bankruptcy proceeding or the scope and effect of the automatic stay should be directed to bankruptcy counsel of record:

Anthony Sodono, III, Esq.
McManimon, Scotland & Baumann, LLC
75 Livingston Avenue, Suite 201
Roseland, New Jersey 07068
Telephone: (973) 622-1800
Email: asodono@msbnj.com

Respectfully Submitted,



S. Bradley Mell

United States Bankruptcy Court
District of New Jersey

Notice of Bankruptcy Case Filing

A bankruptcy case concerning the debtor(s) listed below was filed under Chapter 7 of the United States Bankruptcy Code, entered on 06/12/2026 at 2:31 PM and filed on 06/12/2026.



Steven Bradley Mell
PO Box 835
Far Hills, NJ 07931
SSN / ITIN: xxx-xx-3379

The case was filed by the debtor's attorney:

Anthony Sodono, III
McManimon, Scotland & Baumann, LLC
75 Livingston Avenue
Roseland, NJ 07068
973-622-1800

The case was assigned case number 26-16834.

In most instances, the filing of the bankruptcy case automatically stays certain collection and other actions against the debtor and the debtor's property. Under certain circumstances, the stay may be limited to 30 days or not exist at all, although the debtor can request the court to extend or impose a stay. If you attempt to collect a debt or take other action in violation of the Bankruptcy Code, you may be penalized. Consult a lawyer to determine your rights in this case.

If you would like to view the bankruptcy petition and other documents filed by the debtor, they are available at our *Internet* home page <http://ecf.njb.uscourts.gov> or at the Clerk's Office, 402 East State Street, Trenton, NJ 08608.

You may be a creditor of the debtor. If so, you will receive an additional notice from the court setting forth important deadlines.

Jeanne Naughton
Clerk, U.S. Bankruptcy Court

PACER Service Center			
Transaction Receipt			
06/12/2026 14:38:20			
PACER Login:	ASodono223	Client Code:	999999-0016
Description:	Notice of Filing	Search Criteria:	26-16834
Billable Pages:	1	Cost:	0.10

Tab A-3

Bankruptcy Schedules — Summary of Assets and Liabilities,
Schedules A/B, D, E/F, I, J (Doc. 11)

Tab A-3

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2			
(Spouse if, filing)	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number	26-16834 (EOH)		
(if known)			

☐ Check if this is an amended filing
Official Form 106Sum**Summary of Your Assets and Liabilities and Certain Statistical Information**

12/15

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. Fill out all of your schedules first; then complete the information on this form. If you are filing amended schedules after you file your original forms, you must fill out a new *Summary* and check the box at the top of this page.

Part 1: Summarize Your Assets

		Your assets Value of what you own
1. Schedule A/B: Property (Official Form 106A/B)		
1a. Copy line 55, Total real estate, from Schedule A/B.....	\$	0.00
1b. Copy line 62, Total personal property, from Schedule A/B.....	\$	2,181,376.00
1c. Copy line 63, Total of all property on Schedule A/B.....	\$	2,181,376.00

Part 2: Summarize Your Liabilities

		Your liabilities Amount you owe
2. Schedule D: Creditors Who Have Claims Secured by Property (Official Form 106D)		
2a. Copy the total you listed in Column A, <i>Amount of claim</i> , at the bottom of the last page of Part 1 of <i>Schedule D</i> ...	\$	0.00
3. Schedule E/F: Creditors Who Have Unsecured Claims (Official Form 106E/F)		
3a. Copy the total claims from Part 1 (priority unsecured claims) from line 6e of <i>Schedule E/F</i>	\$	575,000.00
3b. Copy the total claims from Part 2 (nonpriority unsecured claims) from line 6j of <i>Schedule E/F</i>	\$	1,255,000.00
Your total liabilities		\$ 1,830,000.00

Part 3: Summarize Your Income and Expenses

4. Schedule I: Your Income (Official Form 106I)		
Copy your combined monthly income from line 12 of <i>Schedule I</i>	\$	3,500.00
5. Schedule J: Your Expenses (Official Form 106J)		
Copy your monthly expenses from line 22c of <i>Schedule J</i>	\$	4,552.00

Part 4: Answer These Questions for Administrative and Statistical Records

6. **Are you filing for bankruptcy under Chapters 7, 11, or 13?**
- ☐ No. You have nothing to report on this part of the form. Check this box and submit this form to the court with your other schedules.
- ☒ Yes
7. **What kind of debt do you have?**
- ☐ **Your debts are primarily consumer debts.** *Consumer debts* are those "incurred by an individual primarily for a personal, family, or household purpose." 11 U.S.C. § 101(8). Fill out lines 8-9g for statistical purposes. 28 U.S.C. § 159.
- ☒ **Your debts are not primarily consumer debts.** You have nothing to report on this part of the form. *Check this box* and submit this form to the court with your other schedules.

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

8. **From the Statement of Your Current Monthly Income:** Copy your total current monthly income from Official Form 122A-1 Line 11; **OR**, Form 122B Line 11; **OR**, Form 122C-1 Line 14.

\$ _____

9. **Copy the following special categories of claims from Part 4, line 6 of Schedule E/F:**

	Total claim
From Part 4 on Schedule E/F, copy the following:	
9a. Domestic support obligations (Copy line 6a.)	\$ 200,000.00
9b. Taxes and certain other debts you owe the government. (Copy line 6b.)	\$ 375,000.00
9c. Claims for death or personal injury while you were intoxicated. (Copy line 6c.)	\$ 0.00
9d. Student loans. (Copy line 6f.)	\$ 0.00
9e. Obligations arising out of a separation agreement or divorce that you did not report as priority claims. (Copy line 6g.)	\$ 0.00
9f. Debts to pension or profit-sharing plans, and other similar debts. (Copy line 6h.)	+\$ 0.00
9g. Total. Add lines 9a through 9f.	\$ 575,000.00

Fill in this information to identify your case and this filing:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2 (Spouse, if filing)			
	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number	26-16834 (EOH)		

☐ Check if this is an amended filing

Official Form 106A/B

Schedule A/B: Property

12/15

In each category, separately list and describe items. List an asset only once. If an asset fits in more than one category, list the asset in the category where you think it fits best. Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, attach a separate sheet to this form. On the top of any additional pages, write your name and case number (if known). Answer every question.

Part 1: Describe Each Residence, Building, Land, or Other Real Estate You Own or Have an Interest In

1. Do you own or have any legal or equitable interest in any residence, building, land, or similar property?

- ☒ No. Go to Part 2.
- ☐ Yes. Where is the property?

Part 2: Describe Your Vehicles

Do you own, lease, or have legal or equitable interest in any vehicles, whether they are registered or not? Include any vehicles you own that someone else drives. If you lease a vehicle, also report it on *Schedule G: Executory Contracts and Unexpired Leases*.

3. Cars, vans, trucks, tractors, sport utility vehicles, motorcycles

- ☐ No
- ☒ Yes

3.1 Make: **Jeep**

Model: **Wrangle**

Year: **2010**

Approximate mileage: **35,000**

Other information:

Who has an interest in the property? Check one

- ☒ Debtor 1 only
- ☐ Debtor 2 only
- ☐ Debtor 1 and Debtor 2 only
- ☐ At least one of the debtors and another

☐ Check if this is community property
(see instructions)

Do not deduct secured claims or exemptions. Put the amount of any secured claims on *Schedule D: Creditors Who Have Claims Secured by Property*.

Current value of the entire property?	Current value of the portion you own?
\$9,000.00	\$9,000.00

3.2 Make: **Jeep**

Model: **Wrangler**

Year: **2017**

Approximate mileage: **31,000**

Other information:

Who has an interest in the property? Check one

- ☒ Debtor 1 only
- ☐ Debtor 2 only
- ☐ Debtor 1 and Debtor 2 only
- ☐ At least one of the debtors and another

☐ Check if this is community property
(see instructions)

Do not deduct secured claims or exemptions. Put the amount of any secured claims on *Schedule D: Creditors Who Have Claims Secured by Property*.

Current value of the entire property?	Current value of the portion you own?
\$13,000.00	\$13,000.00

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

3.3 Make: **Ferrari**
Model: **355**
Year: **1995**
Approximate mileage: **45,000**
Other information:

Who has an interest in the property? Check one

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another

☐ Check if this is community property
(see instructions)

Do not deduct secured claims or exemptions. Put the amount of any secured claims on *Schedule D: Creditors Who Have Claims Secured by Property*.

Current value of the entire property?

Current value of the portion you own?

\$75,000.00

\$75,000.00

3.4 Make: **Yamaha**
Model: **250 XT Dirt Bike**
Year: **2012**
Approximate mileage: **1,500**
Other information:

Who has an interest in the property? Check one

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another

☐ Check if this is community property
(see instructions)

Do not deduct secured claims or exemptions. Put the amount of any secured claims on *Schedule D: Creditors Who Have Claims Secured by Property*.

Current value of the entire property?

Current value of the portion you own?

\$1,500.00

\$1,500.00

3.5 Make: **Jeep**
Model: **CJ2A**
Year: **1945**
Approximate mileage:
Other information:

Who has an interest in the property? Check one

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another

☐ Check if this is community property
(see instructions)

Do not deduct secured claims or exemptions. Put the amount of any secured claims on *Schedule D: Creditors Who Have Claims Secured by Property*.

Current value of the entire property?

Current value of the portion you own?

\$10,000.00

\$10,000.00

4. **Watercraft, aircraft, motor homes, ATVs and other recreational vehicles, other vehicles, and accessories**
Examples: Boats, trailers, motors, personal watercraft, fishing vessels, snowmobiles, motorcycle accessories

- ☒ No
☐ Yes

5 Add the dollar value of the portion you own for all of your entries from Part 2, including any entries for pages you have attached for Part 2. Write that number here.....=>

\$108,500.00

Part 3: Describe Your Personal and Household Items

Do you own or have any legal or equitable interest in any of the following items?

Current value of the portion you own?
Do not deduct secured claims or exemptions.

6. **Household goods and furnishings**

Examples: Major appliances, furniture, linens, china, kitchenware

- ☒ No
☐ Yes. Describe.....

7. **Electronics**

Examples: Televisions and radios; audio, video, stereo, and digital equipment; computers, printers, scanners; music collections; electronic devices including cell phones, cameras, media players, games

- ☐ No
☒ Yes. Describe.....

Cell phone; 2 TVs

\$800.00

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

8. Collectibles of value

Examples: Antiques and figurines; paintings, prints, or other artwork; books, pictures, or other art objects; stamp, coin, or baseball card collections; other collections, memorabilia, collectibles

☒ No

☐ Yes. Describe.....

9. Equipment for sports and hobbies

Examples: Sports, photographic, exercise, and other hobby equipment; bicycles, pool tables, golf clubs, skis; canoes and kayaks; carpentry tools; musical instruments

☒ No

☐ Yes. Describe.....

10. Firearms

Examples: Pistols, rifles, shotguns, ammunition, and related equipment

☒ No

☐ Yes. Describe.....

11. Clothes

Examples: Everyday clothes, furs, leather coats, designer wear, shoes, accessories

☐ No

☒ Yes. Describe.....

Assorted everyday clothing

\$600.00

12. Jewelry

Examples: Everyday jewelry, costume jewelry, engagement rings, wedding rings, heirloom jewelry, watches, gems, gold, silver

☐ No

☒ Yes. Describe.....

Breitling watch

\$3,000.00

13. Non-farm animals

Examples: Dogs, cats, birds, horses

☒ No

☐ Yes. Describe.....

14. Any other personal and household items you did not already list, including any health aids you did not list

☒ No

☐ Yes. Give specific information.....

15. Add the dollar value of all of your entries from Part 3, including any entries for pages you have attached for Part 3. Write that number here

\$4,400.00

Part 4: Describe Your Financial Assets

Do you own or have any legal or equitable interest in any of the following?

Current value of the portion you own?
Do not deduct secured claims or exemptions.

16. Cash

Examples: Money you have in your wallet, in your home, in a safe deposit box, and on hand when you file your petition

☐ No

☒ Yes.....

Cash on hand

\$200.00

17. Deposits of money

Examples: Checking, savings, or other financial accounts; certificates of deposit; shares in credit unions, brokerage houses, and other similar institutions. If you have multiple accounts with the same institution, list each.

☐ No

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)**☒ Yes.....

Institution name:

17.1. **Checking****TD Bank x3355****\$3,082.00**17.2. **Checking****TD Bank x4611****\$97.00****18. Bonds, mutual funds, or publicly traded stocks***Examples:* Bond funds, investment accounts with brokerage firms, money market accounts☒ No☐ Yes.....

Institution or issuer name:

19. Non-publicly traded stock and interests in incorporated and unincorporated businesses, including an interest in an LLC, partnership, and joint venture☐ No☒ Yes. Give specific information about them.....

Name of entity:

% of ownership:

**WNFW LLC 99% membership interest; 1%
Kimberly Ruggles Mell, ex-wife**

%

\$97.00**20. Government and corporate bonds and other negotiable and non-negotiable instruments***Negotiable instruments* include personal checks, cashiers' checks, promissory notes, and money orders.*Non-negotiable instruments* are those you cannot transfer to someone by signing or delivering them.☒ No☐ Yes. Give specific information about them

Issuer name:

21. Retirement or pension accounts*Examples:* Interests in IRA, ERISA, Keogh, 401(k), 403(b), thrift savings accounts, or other pension or profit-sharing plans☐ No☒ Yes. List each account separately.

Type of account:

Institution name:

ERISA**Gulfstream CM, LLC Profit Sharing Plan and
Cash Balance Plan****\$350,000.00****401(k)****Vanguard****\$740,000.00****22. Security deposits and prepayments**

Your share of all unused deposits you have made so that you may continue service or use from a company

Examples: Agreements with landlords, prepaid rent, public utilities (electric, gas, water), telecommunications companies, or others☒ No☐ Yes.

Institution name or individual:

23. Annuities (A contract for a periodic payment of money to you, either for life or for a number of years)☒ No☐ Yes.....

Issuer name and description.

24. Interests in an education IRA, in an account in a qualified ABLE program, or under a qualified state tuition program.

26 U.S.C. §§ 530(b)(1), 529A(b), and 529(b)(1).

☒ No☐ Yes.....

Institution name and description. Separately file the records of any interests. 11 U.S.C. § 521(c):

25. Trusts, equitable or future interests in property (other than anything listed in line 1), and rights or powers exercisable for your benefit☒ No☐ Yes. Give specific information about them...

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

26. **Patents, copyrights, trademarks, trade secrets, and other intellectual property**

Examples: Internet domain names, websites, proceeds from royalties and licensing agreements

☒ No

☐ Yes. Give specific information about them...

27. **Licenses, franchises, and other general intangibles**

Examples: Building permits, exclusive licenses, cooperative association holdings, liquor licenses, professional licenses

☒ No

☐ Yes. Give specific information about them...

Money or property owed to you?

Current value of the portion you own?
Do not deduct secured claims or exemptions.

28. **Tax refunds owed to you**

☒ No

☐ Yes. Give specific information about them, including whether you already filed the returns and the tax years.....

29. **Family support**

Examples: Past due or lump sum alimony, spousal support, child support, maintenance, divorce settlement, property settlement

☒ No

☐ Yes. Give specific information.....

30. **Other amounts someone owes you**

Examples: Unpaid wages, disability insurance payments, disability benefits, sick pay, vacation pay, workers' compensation, Social Security benefits; unpaid loans you made to someone else

☒ No

☐ Yes. Give specific information..

31. **Interests in insurance policies**

Examples: Health, disability, or life insurance; health savings account (HSA); credit, homeowner's, or renter's insurance

☒ No

☐ Yes. Name the insurance company of each policy and list its value.

Company name:

Beneficiary:

Surrender or refund value:

32. **Any interest in property that is due you from someone who has died**

If you are the beneficiary of a living trust, expect proceeds from a life insurance policy, or are currently entitled to receive property because someone has died.

☒ No

☐ Yes. Give specific information..

33. **Claims against third parties, whether or not you have filed a lawsuit or made a demand for payment**

Examples: Accidents, employment disputes, insurance claims, or rights to sue

☒ No

☐ Yes. Describe each claim.....

34. **Other contingent and unliquidated claims of every nature, including counterclaims of the debtor and rights to set off claims**

☐ No

☒ Yes. Describe each claim.....

Lawsuit against D.D. and E.E.

Unknown

Ciesla Shahinian & Giantomasi PC - Sale of boat through KRM 2012 Family Trust

Unknown

35. **Any financial assets you did not already list**

☐ No

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)**☒ Yes. Give specific information..**Nagel & Rice LLP Attorney Trust Account
Civil attachment****\$750,000.00****Law Offices of Richard A Greifinger Trust Account****\$75,000.00****McElroy Deutsch Mulvaney & Carpenter, LLP, Trust Account -
Attorneys for Gulfstream****\$150,000.00**

36. Add the dollar value of all of your entries from Part 4, including any entries for pages you have attached for Part 4. Write that number here.....

\$2,068,476.00**Part 5: Describe Any Business-Related Property You Own or Have an Interest In. List any real estate in Part 1.**

37. Do you own or have any legal or equitable interest in any business-related property?

☒ No. Go to Part 6.☐ Yes. Go to line 38.**Part 6: Describe Any Farm- and Commercial Fishing-Related Property You Own or Have an Interest In.**
If you own or have an interest in farmland, list it in Part 1.

46. Do you own or have any legal or equitable interest in any farm- or commercial fishing-related property?

☒ No. Go to Part 7.☐ Yes. Go to line 47.**Part 7: Describe All Property You Own or Have an Interest in That You Did Not List Above**

53. Do you have other property of any kind you did not already list?

Examples: Season tickets, country club membership☒ No☐ Yes. Give specific information.....

54. Add the dollar value of all of your entries from Part 7. Write that number here

\$0.00**Part 8: List the Totals of Each Part of this Form**

55. Part 1: Total real estate, line 2		\$0.00
56. Part 2: Total vehicles, line 5	\$108,500.00	
57. Part 3: Total personal and household items, line 15	\$4,400.00	
58. Part 4: Total financial assets, line 36	\$2,068,476.00	
59. Part 5: Total business-related property, line 45	\$0.00	
60. Part 6: Total farm- and fishing-related property, line 52	\$0.00	
61. Part 7: Total other property not listed, line 54	\$0.00	
62. Total personal property. Add lines 56 through 61...	\$2,181,376.00	Copy personal property total \$2,181,376.00
63. Total of all property on Schedule A/B. Add line 55 + line 62		\$2,181,376.00

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2 (Spouse if, filing)			
	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number (if known)	26-16834 (EOH)		

☐ Check if this is an amended filing
Official Form 106C**Schedule C: The Property You Claim as Exempt****4/25**

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. Using the property you listed on *Schedule A/B: Property* (Official Form 106A/B) as your source, list the property that you claim as exempt. If more space is needed, fill out and attach to this page as many copies of *Part 2: Additional Page* as necessary. On the top of any additional pages, write your name and case number (if known).

For each item of property you claim as exempt, you must specify the amount of the exemption you claim. One way of doing so is to state a specific dollar amount as exempt. Alternatively, you may claim the full fair market value of the property being exempted up to the amount of any applicable statutory limit. Some exemptions—such as those for health aids, rights to receive certain benefits, and tax-exempt retirement funds—may be unlimited in dollar amount. However, if you claim an exemption of 100% of fair market value under a law that limits the exemption to a particular dollar amount and the value of the property is determined to exceed that amount, your exemption would be limited to the applicable statutory amount.

Part 1: Identify the Property You Claim as Exempt

1. Which set of exemptions are you claiming? Check one only, even if your spouse is filing with you.

☐ You are claiming state and federal nonbankruptcy exemptions. 11 U.S.C. § 522(b)(3)

☒ You are claiming federal exemptions. 11 U.S.C. § 522(b)(2)

2. For any property you list on *Schedule A/B* that you claim as exempt, fill in the information below.

Brief description of the property and line on <i>Schedule A/B</i> that lists this property	Current value of the portion you own Copy the value from <i>Schedule A/B</i>	Amount of the exemption you claim Check only one box for each exemption.	Specific laws that allow exemption
1995 Ferrari 355 45,000 miles Line from <i>Schedule A/B</i> : 3.3	\$75,000.00	☒ \$5,025.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(2)
1995 Ferrari 355 45,000 miles Line from <i>Schedule A/B</i> : 3.3	\$75,000.00	☒ \$17,475.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(5)
Cell phone; 2 TVs Line from <i>Schedule A/B</i> : 7.1	\$800.00	☒ \$800.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(3)
Assorted everyday clothing Line from <i>Schedule A/B</i> : 11.1	\$600.00	☒ \$600.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(3)
Breitling watch Line from <i>Schedule A/B</i> : 12.1	\$3,000.00	☒ \$2,125.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(4)

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

Brief description of the property and line on Schedule A/B that lists this property	Current value of the portion you own Copy the value from Schedule A/B	Amount of the exemption you claim Check only one box for each exemption.	Specific laws that allow exemption
ERISA: Gulfstream CM, LLC Profit Sharing Plan and Cash Balance Plan Line from Schedule A/B: 21.1	\$350,000.00	☒ \$350,000.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(12)
401(k): Vanguard Line from Schedule A/B: 21.2	\$740,000.00	☒ \$740,000.00 ☐ 100% of fair market value, up to any applicable statutory limit	11 U.S.C. § 522(d)(12)

3. **Are you claiming a homestead exemption of more than \$214,000?**

(Subject to adjustment on 4/01/28 and every 3 years after that for cases filed on or after the date of adjustment.)

- ☒ No
- ☐ Yes. Did you acquire the property covered by the exemption within 1,215 days before you filed this case?
- ☐ No
- ☐ Yes

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2			
(Spouse if, filing)	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number	26-16834 (EOH)		
(if known)			

☐ Check if this is an amended filing

Official Form 106D

Schedule D: Creditors Who Have Claims Secured by Property

12/15

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, copy the Additional Page, fill it out, number the entries, and attach it to this form. On the top of any additional pages, write your name and case number (if known).

1. Do any creditors have claims secured by your property?

- ☒ No. Check this box and submit this form to the court with your other schedules. You have nothing else to report on this form.
- ☐ Yes. Fill in all of the information below.

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2 (Spouse if, filing)			
	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number (if known)	26-16834 (EOH)		

☐ Check if this is an amended filing

Official Form 106E/F

Schedule E/F: Creditors Who Have Unsecured Claims

12/15

Be as complete and accurate as possible. Use Part 1 for creditors with PRIORITY claims and Part 2 for creditors with NONPRIORITY claims. List the other party to any executory contracts or unexpired leases that could result in a claim. Also list executory contracts on Schedule A/B: Property (Official Form 106A/B) and on Schedule G: Executory Contracts and Unexpired Leases (Official Form 106G). Do not include any creditors with partially secured claims that are listed in Schedule D: Creditors Who Have Claims Secured by Property. If more space is needed, copy the Part you need, fill it out, number the entries in the boxes on the left. Attach the Continuation Page to this page. If you have no information to report in a Part, do not file that Part. On the top of any additional pages, write your name and case number (if known).

Part 1: List All of Your PRIORITY Unsecured Claims

1. Do any creditors have priority unsecured claims against you?

☐ No. Go to Part 2.

☒ Yes.

2. List all of your priority unsecured claims. If a creditor has more than one priority unsecured claim, list the creditor separately for each claim. For each claim listed, identify what type of claim it is. If a claim has both priority and nonpriority amounts, list that claim here and show both priority and nonpriority amounts. As much as possible, list the claims in alphabetical order according to the creditor's name. If you have more than two priority unsecured claims, fill out the Continuation Page of Part 1. If more than one creditor holds a particular claim, list the other creditors in Part 3.

(For an explanation of each type of claim, see the instructions for this form in the instruction booklet.)

		Total claim	Priority amount	Nonpriority amount
2.1	Internal Revenue Service Priority Creditor's Name PO Box 7346 Philadelphia, PA 19101-7346 Number Street City State Zip Code	Last 4 digits of account number	\$300,000.00	\$300,000.00
	When was the debt incurred? As of the date you file, the claim is: Check all that apply ☐ Contingent ☐ Unliquidated ☐ Disputed Type of PRIORITY unsecured claim: ☐ Domestic support obligations ☒ Taxes and certain other debts you owe the government ☐ Claims for death or personal injury while you were intoxicated ☐ Other. Specify _____ Taxes			\$0.00

Who incurred the debt? Check one.

☒ Debtor 1 only

☐ Debtor 2 only

☐ Debtor 1 and Debtor 2 only

☐ At least one of the debtors and another

☐ Check if this claim is for a community debt

Is the claim subject to offset?

☒ No

☐ Yes

Debtor 1 **Steven Bradley Mell**

Case number (if known)

26-16834 (EOH)

2.2	Mell, Kimberly Priority Creditor's Name c/o Patrick J. Whalen, Esq. 109 S. Warren Street PO Box 23653 Trenton, NJ 08608 Number Street City State Zip Code	Last 4 digits of account number _____	\$200,000.00	\$0.00	\$200,000.00
	When was the debt incurred? _____				
	Who incurred the debt? Check one. ☒ Debtor 1 only ☐ Debtor 2 only ☐ Debtor 1 and Debtor 2 only ☐ At least one of the debtors and another ☐ Check if this claim is for a community debt Is the claim subject to offset? ☒ No ☐ Yes	As of the date you file, the claim is: Check all that apply ☐ Contingent ☐ Unliquidated ☐ Disputed Type of PRIORITY unsecured claim: ☒ Domestic support obligations ☐ Taxes and certain other debts you owe the government ☐ Claims for death or personal injury while you were intoxicated ☐ Other. Specify _____			
Pursuant to Marital Settlement Agreement					

2.3	NJ Division of Taxation Priority Creditor's Name Compliance & Enforcement/Bankruptcy Unit 3 John Fitch Way, 5th Fl. PO Box 245 Trenton, NJ 08695-0245 Number Street City State Zip Code	Last 4 digits of account number _____	\$75,000.00	\$0.00	\$75,000.00
	When was the debt incurred? _____				
	Who incurred the debt? Check one. ☒ Debtor 1 only ☐ Debtor 2 only ☐ Debtor 1 and Debtor 2 only ☐ At least one of the debtors and another ☐ Check if this claim is for a community debt Is the claim subject to offset? ☒ No ☐ Yes	As of the date you file, the claim is: Check all that apply ☐ Contingent ☐ Unliquidated ☐ Disputed Type of PRIORITY unsecured claim: ☐ Domestic support obligations ☒ Taxes and certain other debts you owe the government ☐ Claims for death or personal injury while you were intoxicated ☐ Other. Specify _____			
Taxes					

Part 2: List All of Your NONPRIORITY Unsecured Claims

3. Do any creditors have nonpriority unsecured claims against you?

- ☐ No. You have nothing to report in this part. Submit this form to the court with your other schedules.
- ☒ Yes.

4. List all of your nonpriority unsecured claims in the alphabetical order of the creditor who holds each claim. If a creditor has more than one nonpriority unsecured claim, list the creditor separately for each claim. For each claim listed, identify what type of claim it is. Do not list claims already included in Part 1. If more than one creditor holds a particular claim, list the other creditors in Part 3. If you have more than three nonpriority unsecured claims fill out the Continuation Page of Part 2.

Total claim

Debtor 1 **Steven Bradley Mell**

Case number (if known)

26-16834 (EOH)

4.1

B.B. (civil party plaintiff)

Nonpriority Creditor's Name

**c/o Michael Paragano, Esq.
Nagel Rice LLP
103 Eisenhower Parkway
Roseland, NJ 07068**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt

Is the claim subject to offset?

- ☒ No
☐ Yes

Last 4 digits of account number

Unknown

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☒ Contingent
☒ Unliquidated
☒ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts
☒ Other. Specify **Lawsuit**

4.2

Berman, Glenn (Ret. Judge)

Nonpriority Creditor's Name

**Greenbaum Rowe Smith & Davis
LLP
99 Wood Avenue South
Iselin, NJ 08830**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt

Is the claim subject to offset?

- ☒ No
☐ Yes

Last 4 digits of account number

\$60,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☐ Contingent
☐ Unliquidated
☐ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts
☒ Other. Specify

4.3

Gulfsteam CM

Nonpriority Creditor's Name

**c/o Harry McEnroe, Esq.
McElroy Deutsch Mulvaney &
Carpenter
1300 Mount Kemble Ave, PO Box
2075
Morristown, NJ 07962**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt

Is the claim subject to offset?

- ☒ No
☐ Yes

Last 4 digits of account number

Unknown

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☒ Contingent
☒ Unliquidated
☒ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts
☒ Other. Specify

Debtor 1 **Steven Bradley Mell**

Case number (if known)

26-16834 (EOH)

4.4

Kimberly Ruggles Mell 2012 Family Trust

Nonpriority Creditor's Name

**Attn: Trustee, Emily Mell
PO Box 835
Far Hills, NJ 07931**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
- ☐ Debtor 2 only
- ☐ Debtor 1 and Debtor 2 only
- ☐ At least one of the debtors and another
- ☐ **Check if this claim is for a community debt**

Is the claim subject to offset?

- ☒ No
- ☐ Yes

Last 4 digits of account number

\$80,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☒ Contingent
- ☒ Unliquidated
- ☒ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
- ☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
- ☐ Debts to pension or profit-sharing plans, and other similar debts

☒ Other. Specify **Deficiency claim**

4.5

Mell, Courtney (a/k/a Peter)

Nonpriority Creditor's Name

**PO Box 2012
Palm Beach, FL 33480**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
- ☐ Debtor 2 only
- ☐ Debtor 1 and Debtor 2 only
- ☐ At least one of the debtors and another
- ☐ **Check if this claim is for a community debt**

Is the claim subject to offset?

- ☒ No
- ☐ Yes

Last 4 digits of account number

\$200,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☐ Contingent
- ☐ Unliquidated
- ☐ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
- ☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
- ☐ Debts to pension or profit-sharing plans, and other similar debts

☒ Other. Specify **Personal loan**

4.6

Mell, Diana

Nonpriority Creditor's Name

**72 Fletcher Hall
Johns Island, SC 29455**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
- ☐ Debtor 2 only
- ☐ Debtor 1 and Debtor 2 only
- ☐ At least one of the debtors and another
- ☐ **Check if this claim is for a community debt**

Is the claim subject to offset?

- ☒ No
- ☐ Yes

Last 4 digits of account number

\$75,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☐ Contingent
- ☐ Unliquidated
- ☐ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
- ☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
- ☐ Debts to pension or profit-sharing plans, and other similar debts

☒ Other. Specify **Loan**

Debtor 1 **Steven Bradley Mell**

Case number (if known)

26-16834 (EOH)

4.7

Mell, Kimberly fbo W.H. Mell Assoc. Inc.

Nonpriority Creditor's Name

**c/o Patrick J. Whalen, Esq.
109 S. Warren Street
PO Box 23653
Trenton, NJ 08608**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt
Is the claim subject to offset?

- ☒ No
☐ Yes

Last 4 digits of account number

\$800,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☒ Contingent
☒ Unliquidated
☒ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts
☒ Other. Specify

4.8

Nagel Rice LLP

Nonpriority Creditor's Name

**Attn: Bruce H. Nagel, Esq.
103 Eisenhower Parkway
Roseland, NJ 07068**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt
Is the claim subject to offset?

- ☒ No
☐ Yes

Last 4 digits of account number

\$10,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☐ Contingent
☐ Unliquidated
☐ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts

☒ Other. Specify **Sanctions claim arising out of litigation (ESX-L-7200-19)**

4.9

Steven Bradley Mell 2012 Family Trust

Nonpriority Creditor's Name

**Attn: Kimberly Ruggles Mell, Trustee
PO Box 724
Far Hills, NJ 07931**

Number Street City State Zip Code

Who incurred the debt? Check one.

- ☒ Debtor 1 only
☐ Debtor 2 only
☐ Debtor 1 and Debtor 2 only
☐ At least one of the debtors and another
☐ Check if this claim is for a community debt
Is the claim subject to offset?

- ☐ No
☒ Yes

Last 4 digits of account number

\$30,000.00

When was the debt incurred?

As of the date you file, the claim is: Check all that apply

- ☒ Contingent
☒ Unliquidated
☒ Disputed

Type of NONPRIORITY unsecured claim:

- ☐ Student loans
☐ Obligations arising out of a separation agreement or divorce that you did not report as priority claims
☐ Debts to pension or profit-sharing plans, and other similar debts

☒ Other. Specify **Deficiency claim**

Debtor 1 **Steven Bradley Mell**

Case number (if known)

26-16834 (EOH)**Part 3: List Others to Be Notified About a Debt That You Already Listed**

5. Use this page only if you have others to be notified about your bankruptcy, for a debt that you already listed in Parts 1 or 2. For example, if a collection agency is trying to collect from you for a debt you owe to someone else, list the original creditor in Parts 1 or 2, then list the collection agency here. Similarly, if you have more than one creditor for any of the debts that you listed in Parts 1 or 2, list the additional creditors here. If you do not have additional persons to be notified for any debts in Parts 1 or 2, do not fill out or submit this page.

Name and Address

NJ Attorney General
25 Market Street
PO Box 112
Richard J. Hughes Justice Complex
Trenton, NJ 08625-0112

On which entry in Part 1 or Part 2 did you list the original creditor?

Line **2.3** of (Check one):☒ Part 1: Creditors with Priority Unsecured Claims☐ Part 2: Creditors with Nonpriority Unsecured Claims

Last 4 digits of account number

Name and Address

United States Attorney
Peter Rodino Federal Building
970 Broad Street, Ste. 700
Newark, NJ 07102

On which entry in Part 1 or Part 2 did you list the original creditor?

Line **2.1** of (Check one):☒ Part 1: Creditors with Priority Unsecured Claims☐ Part 2: Creditors with Nonpriority Unsecured Claims

Last 4 digits of account number

Name and Address

United States Attorney General
United States Dept of Justice
Ben Franklin Station
PO Box 683
Washington, DC 20044

On which entry in Part 1 or Part 2 did you list the original creditor?

Line **2.1** of (Check one):☒ Part 1: Creditors with Priority Unsecured Claims☐ Part 2: Creditors with Nonpriority Unsecured Claims

Last 4 digits of account number

Part 4: Add the Amounts for Each Type of Unsecured Claim

6. Total the amounts of certain types of unsecured claims. This information is for statistical reporting purposes only. 28 U.S.C. §159. Add the amounts for each type of unsecured claim.

		Total Claim	
Total claims from Part 1	6a. Domestic support obligations	6a.	\$ <u>200,000.00</u>
	6b. Taxes and certain other debts you owe the government	6b.	\$ <u>375,000.00</u>
	6c. Claims for death or personal injury while you were intoxicated	6c.	\$ <u>0.00</u>
	6d. Other. Add all other priority unsecured claims. Write that amount here.	6d.	\$ <u>0.00</u>
	6e. Total Priority. Add lines 6a through 6d.	6e.	\$ <u>575,000.00</u>
Total claims from Part 2	6f. Student loans	6f.	\$ <u>0.00</u>
	6g. Obligations arising out of a separation agreement or divorce that you did not report as priority claims	6g.	\$ <u>0.00</u>
	6h. Debts to pension or profit-sharing plans, and other similar debts	6h.	\$ <u>0.00</u>
	6i. Other. Add all other nonpriority unsecured claims. Write that amount here.	6i.	\$ <u>1,255,000.00</u>
	6j. Total Nonpriority. Add lines 6f through 6i.	6j.	\$ <u>1,255,000.00</u>

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2			
(Spouse if, filing)	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number	26-16834 (EOH)		
(if known)			

☐ Check if this is an amended filing

Official Form 106G

Schedule G: Executory Contracts and Unexpired Leases

12/15

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, copy the additional page, fill it out, number the entries, and attach it to this page. On the top of any additional pages, write your name and case number (if known).

- Do you have any executory contracts or unexpired leases?**
☒ No. Check this box and file this form with the court with your other schedules. You have nothing else to report on this form.
☐ Yes. Fill in all of the information below even if the contacts of leases are listed on *Schedule A/B:Property* (Official Form 106 A/B).
- List separately each person or company with whom you have the contract or lease. Then state what each contract or lease is for (for example, rent, vehicle lease, cell phone).** See the instructions for this form in the instruction booklet for more examples of executory contracts and unexpired leases.

Person or company with whom you have the contract or lease	State what the contract or lease is for
Name, Number, Street, City, State and ZIP Code	
2.1	
Name	
Number Street	
City State ZIP Code	
2.2	
Name	
Number Street	
City State ZIP Code	
2.3	
Name	
Number Street	
City State ZIP Code	
2.4	
Name	
Number Street	
City State ZIP Code	
2.5	
Name	
Number Street	
City State ZIP Code	

Fill in this information to identify your case:

Debtor 1	Steven Bradley Mell		
	First Name	Middle Name	Last Name
Debtor 2 (Spouse if, filing)			
	First Name	Middle Name	Last Name
United States Bankruptcy Court for the:	DISTRICT OF NEW JERSEY		
Case number (if known)	26-16834 (EOH)		

☐ Check if this is an amended filing

Official Form 106H Schedule H: Your Codebtors

12/15

Codebtors are people or entities who are also liable for any debts you may have. Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, copy the Additional Page, fill it out, and number the entries in the boxes on the left. Attach the Additional Page to this page. On the top of any Additional Pages, write your name and case number (if known). Answer every question.

1. Do you have any codebtors? (If you are filing a joint case, do not list either spouse as a codebtor.)

- ☒ No
☐ Yes

2. Within the last 8 years, have you lived in a community property state or territory? (Community property states and territories include Arizona, California, Idaho, Louisiana, Nevada, New Mexico, Puerto Rico, Texas, Washington, and Wisconsin.)

- ☒ No. Go to line 3.
☐ Yes. Did your spouse, former spouse, or legal equivalent live with you at the time?

3. In Column 1, list all of your codebtors. Do not include your spouse as a codebtor if your spouse is filing with you. List the person shown in line 2 again as a codebtor only if that person is a guarantor or cosigner. Make sure you have listed the creditor on Schedule D (Official Form 106D), Schedule E/F (Official Form 106E/F), or Schedule G (Official Form 106G). Use Schedule D, Schedule E/F, or Schedule G to fill out Column 2.

Column 1: Your codebtor

Name, Number, Street, City, State and ZIP Code

Column 2: The creditor to whom you owe the debt

Check all schedules that apply:

3.1

Name _____

Number _____ Street _____

City _____ State _____ ZIP Code _____

- ☐ Schedule D, line _____
☐ Schedule E/F, line _____
☐ Schedule G, line _____

3.2

Name _____

Number _____ Street _____

City _____ State _____ ZIP Code _____

- ☐ Schedule D, line _____
☐ Schedule E/F, line _____
☐ Schedule G, line _____

Fill in this information to identify your case:

Debtor 1 Steven Bradley Mell

Debtor 2
(Spouse, if filing)

United States Bankruptcy Court for the: DISTRICT OF NEW JERSEY

Case number 26-16834 (EOH)
(If known)

Check if this is:

- ☐ An amended filing
☐ A supplement showing postpetition chapter 13 income as of the following date:

MM / DD / YYYY

Official Form 106I

Schedule I: Your Income

12/15

Be as complete and accurate as possible. If two married people are filing together (Debtor 1 and Debtor 2), both are equally responsible for supplying correct information. If you are married and not filing jointly, and your spouse is living with you, include information about your spouse. If you are separated and your spouse is not filing with you, do not include information about your spouse. If more space is needed, attach a separate sheet to this form. On the top of any additional pages, write your name and case number (if known). Answer every question.

Part 1: Describe Employment

1. Fill in your employment information.

If you have more than one job, attach a separate page with information about additional employers.

Include part-time, seasonal, or self-employed work.

Occupation may include student or homemaker, if it applies.

Employment status

Occupation

Employer's name

Employer's address

How long employed there?

Debtor 1

☐ Employed

☒ Not employed

Debtor 2 or non-filing spouse

☐ Employed

☐ Not employed

Part 2: Give Details About Monthly Income

Estimate monthly income as of the date you file this form. If you have nothing to report for any line, write \$0 in the space. Include your non-filing spouse unless you are separated.

If you or your non-filing spouse have more than one employer, combine the information for all employers for that person on the lines below. If you need more space, attach a separate sheet to this form.

	For Debtor 1	For Debtor 2 or non-filing spouse
2. List monthly gross wages, salary, and commissions (before all payroll deductions). If not paid monthly, calculate what the monthly wage would be.	2. \$ 0.00	\$ N/A
3. Estimate and list monthly overtime pay.	3. +\$ 0.00	+\$ N/A
4. Calculate gross income. Add line 2 + line 3.	4. \$ 0.00	\$ N/A

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

	For Debtor 1	For Debtor 2 or non-filing spouse
Copy line 4 here	4. \$ 0.00	\$ N/A
5. List all payroll deductions:		
5a. Tax, Medicare, and Social Security deductions	5a. \$ 0.00	\$ N/A
5b. Mandatory contributions for retirement plans	5b. \$ 0.00	\$ N/A
5c. Voluntary contributions for retirement plans	5c. \$ 0.00	\$ N/A
5d. Required repayments of retirement fund loans	5d. \$ 0.00	\$ N/A
5e. Insurance	5e. \$ 0.00	\$ N/A
5f. Domestic support obligations	5f. \$ 0.00	\$ N/A
5g. Union dues	5g. \$ 0.00	\$ N/A
5h. Other deductions. Specify:	5h.+ \$ 0.00	+ \$ N/A
6. Add the payroll deductions. Add lines 5a+5b+5c+5d+5e+5f+5g+5h.	6. \$ 0.00	\$ N/A
7. Calculate total monthly take-home pay. Subtract line 6 from line 4.	7. \$ 0.00	\$ N/A
8. List all other income regularly received:		
8a. Net income from rental property and from operating a business, profession, or farm Attach a statement for each property and business showing gross receipts, ordinary and necessary business expenses, and the total monthly net income.	8a. \$ 0.00	\$ N/A
8b. Interest and dividends	8b. \$ 0.00	\$ N/A
8c. Family support payments that you, a non-filing spouse, or a dependent regularly receive Include alimony, spousal support, child support, maintenance, divorce settlement, and property settlement.	8c. \$ 0.00	\$ N/A
8d. Unemployment compensation	8d. \$ 0.00	\$ N/A
8e. Social Security	8e. \$ 0.00	\$ N/A
8f. Other government assistance that you regularly receive Include cash assistance and the value (if known) of any non-cash assistance that you receive, such as food stamps (benefits under the Supplemental Nutrition Assistance Program) or housing subsidies. Specify:	8f. \$ 0.00	\$ N/A
8g. Pension or retirement income	8g. \$ 0.00	\$ N/A
8h. Other monthly income. Specify: Support from brother, Courtney Mell (approx.)	8h.+ \$ 3,500.00	+ \$ N/A
9. Add all other income. Add lines 8a+8b+8c+8d+8e+8f+8g+8h.	9. \$ 3,500.00	\$ N/A
10. Calculate monthly income. Add line 7 + line 9. Add the entries in line 10 for Debtor 1 and Debtor 2 or non-filing spouse.	10. \$ 3,500.00 + \$ N/A	= \$ 3,500.00
11. State all other regular contributions to the expenses that you list in Schedule J. Include contributions from an unmarried partner, members of your household, your dependents, your roommates, and other friends or relatives. Do not include any amounts already included in lines 2-10 or amounts that are not available to pay expenses listed in Schedule J. Specify:		
	11. +\$ 0.00	
12. Add the amount in the last column of line 10 to the amount in line 11. The result is the combined monthly income. Write that amount on the <i>Summary of Schedules</i> and <i>Statistical Summary of Certain Liabilities and Related Data</i> , if it applies	12. \$ 3,500.00	Combined monthly income
13. Do you expect an increase or decrease within the year after you file this form?		
☒ No.		
☐ Yes. Explain: Currently unknown.		

Fill in this information to identify your case:

Debtor 1 Steven Bradley Mell

Debtor 2 _____
(Spouse, if filing)

United States Bankruptcy Court for the: DISTRICT OF NEW JERSEY

Case number 26-16834 (EOH)
(If known)

Check if this is:

- ☐ An amended filing
- ☐ A supplement showing postpetition chapter 13 expenses as of the following date:

MM / DD / YYYY

Official Form 106J

Schedule J: Your Expenses

12/15

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, attach another sheet to this form. On the top of any additional pages, write your name and case number (if known). Answer every question.

Part 1: Describe Your Household

1. Is this a joint case?

☒ No. Go to line 2.

☐ Yes. Does Debtor 2 live in a separate household?

☐ No

☐ Yes. Debtor 2 must file Official Form 106J-2, *Expenses for Separate Household of Debtor 2*.

2. Do you have dependents? ☒ No

Do not list Debtor 1 and Debtor 2.

☐ Yes. Fill out this information for each dependent.....

Dependent's relationship to Debtor 1 or Debtor 2

Dependent's age

Does dependent live with you?

Do not state the dependents names.

- ☐ No
☐ Yes
☐ No
☐ Yes
☐ No
☐ Yes
☐ No
☐ Yes

3. Do your expenses include expenses of people other than yourself and your dependents? ☒ No
☐ Yes

Part 2: Estimate Your Ongoing Monthly Expenses

Estimate your expenses as of your bankruptcy filing date unless you are using this form as a supplement in a Chapter 13 case to report expenses as of a date after the bankruptcy is filed. If this is a supplemental *Schedule J*, check the box at the top of the form and fill in the applicable date.

Include expenses paid for with non-cash government assistance if you know the value of such assistance and have included it on *Schedule I: Your Income* (Official Form 106I.)

Your expenses

4. The rental or home ownership expenses for your residence. Include first mortgage payments and any rent for the ground or lot.

4. \$ 2,000.00

If not included in line 4:

4a. Real estate taxes

4a. \$ 0.00

4b. Property, homeowner's, or renter's insurance

4b. \$ 0.00

4c. Home maintenance, repair, and upkeep expenses

4c. \$ 0.00

4d. Homeowner's association or condominium dues

4d. \$ 0.00

5. Additional mortgage payments for your residence, such as home equity loans

5. \$ 0.00

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

6. Utilities:								
6a. Electricity, heat, natural gas	6a. \$	500.00						
6b. Water, sewer, garbage collection	6b. \$	0.00						
6c. Telephone, cell phone, Internet, satellite, and cable services	6c. \$	27.00						
6d. Other. Specify: _____	6d. \$	0.00						
7. Food and housekeeping supplies	7. \$	1,000.00						
8. Childcare and children's education costs	8. \$	0.00						
9. Clothing, laundry, and dry cleaning	9. \$	100.00						
10. Personal care products and services	10. \$	100.00						
11. Medical and dental expenses	11. \$	0.00						
12. Transportation. Include gas, maintenance, bus or train fare. Do not include car payments.	12. \$	350.00						
13. Entertainment, clubs, recreation, newspapers, magazines, and books	13. \$	100.00						
14. Charitable contributions and religious donations	14. \$	0.00						
15. Insurance. Do not include insurance deducted from your pay or included in lines 4 or 20.								
15a. Life insurance	15a. \$	0.00						
15b. Health insurance	15b. \$	0.00						
15c. Vehicle insurance	15c. \$	375.00						
15d. Other insurance. Specify: _____	15d. \$	0.00						
16. Taxes. Do not include taxes deducted from your pay or included in lines 4 or 20. Specify: _____								
	16. \$	0.00						
17. Installment or lease payments:								
17a. Car payments for Vehicle 1	17a. \$	0.00						
17b. Car payments for Vehicle 2	17b. \$	0.00						
17c. Other. Specify: _____	17c. \$	0.00						
17d. Other. Specify: _____	17d. \$	0.00						
18. Your payments of alimony, maintenance, and support that you did not report as deducted from your pay on line 5, Schedule I, Your Income (Official Form 106I).								
	18. \$	0.00						
19. Other payments you make to support others who do not live with you.								
	\$	0.00						
Specify: _____								
20. Other real property expenses not included in lines 4 or 5 of this form or on Schedule I: Your Income.								
20a. Mortgages on other property	20a. \$	0.00						
20b. Real estate taxes	20b. \$	0.00						
20c. Property, homeowner's, or renter's insurance	20c. \$	0.00						
20d. Maintenance, repair, and upkeep expenses	20d. \$	0.00						
20e. Homeowner's association or condominium dues	20e. \$	0.00						
21. Other: Specify: _____	21. +\$	0.00						
22. Calculate your monthly expenses								
22a. Add lines 4 through 21.	<table border="0"> <tr> <td>\$</td> <td>4,552.00</td> </tr> <tr> <td>\$</td> <td></td> </tr> <tr> <td>\$</td> <td>4,552.00</td> </tr> </table>		\$	4,552.00	\$		\$	4,552.00
\$			4,552.00					
\$								
\$	4,552.00							
22b. Copy line 22 (monthly expenses for Debtor 2), if any, from Official Form 106J-2								
22c. Add line 22a and 22b. The result is your monthly expenses.								
23. Calculate your monthly net income.								
23a. Copy line 12 (<i>your combined monthly income</i>) from Schedule I.	23a. \$	3,500.00						
23b. Copy your monthly expenses from line 22c above.	23b. -\$	4,552.00						
23c. Subtract your monthly expenses from your monthly income. The result is your <i>monthly net income</i> .								
	23c. \$	-1,052.00						
24. Do you expect an increase or decrease in your expenses within the year after you file this form? For example, do you expect to finish paying for your car loan within the year or do you expect your mortgage payment to increase or decrease because of a modification to the terms of your mortgage?								
☐ No.								
☒ Yes.								
Explain here: Expect increase in rent; current rent is discounted.								

Fill in this information to identify your case:

Debtor 1 Steven Bradley Mell
First Name Middle Name Last Name

Debtor 2
(Spouse if, filing) First Name Middle Name Last Name

United States Bankruptcy Court for the: DISTRICT OF NEW JERSEY

Case number 26-16834 (EOH)
(if known)

☐ Check if this is an amended filing

Official Form 106Dec

Declaration About an Individual Debtor's Schedules

12/15

If two married people are filing together, both are equally responsible for supplying correct information.

You must file this form whenever you file bankruptcy schedules or amended schedules. Making a false statement, concealing property, or obtaining money or property by fraud in connection with a bankruptcy case can result in fines up to \$250,000, or imprisonment for up to 20 years, or both. 18 U.S.C. §§ 152, 1341, 1519, and 3571.

Sign Below

Did you pay or agree to pay someone who is NOT an attorney to help you fill out bankruptcy forms?

☒ No

☐ Yes. Name of person _____ Attach Bankruptcy Petition Preparer's Notice, Declaration, and Signature (Official Form 119)

Under penalty of perjury, I declare that I have read the summary and schedules filed with this declaration and that they are true and correct.

X /s/ Steven Bradley Mell
Steven Bradley Mell
Signature of Debtor 1

Date June 25, 2026

X _____
Signature of Debtor 2

Date _____

Fill in this information to identify your case:

Debtor 1 **Steven Bradley Mell**
First Name Middle Name Last Name

Debtor 2
(Spouse if, filing) First Name Middle Name Last Name

United States Bankruptcy Court for the: **DISTRICT OF NEW JERSEY**

Case number **26-16834 (EOH)**
(if known)

☐ Check if this is an amended filing

Official Form 107

Statement of Financial Affairs for Individuals Filing for Bankruptcy

04/25

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for supplying correct information. If more space is needed, attach a separate sheet to this form. On the top of any additional pages, write your name and case number (if known). Answer every question.

Part 1: Give Details About Your Marital Status and Where You Lived Before

1. What is your current marital status?

- ☐ Married
☒ Not married

2. During the last 3 years, have you lived anywhere other than where you live now?

- ☐ No
☒ Yes. List all of the places you lived in the last 3 years. Do not include where you live now.

Debtor 1:	Dates Debtor 1 lived there	Debtor 2 Prior Address:	Dates Debtor 2 lived there
FCI Fort Dix Kintock Newark Halfway House 50 Fenwick Street Newark, NJ 07114	From-To: 11/13/2024 to 12/13/2024	☐ Same as Debtor 1	☐ Same as Debtor 1 From-To:

3. Within the last 8 years, did you ever live with a spouse or legal equivalent in a community property state or territory? (Community property states and territories include Arizona, California, Idaho, Louisiana, Nevada, New Mexico, Puerto Rico, Texas, Washington and Wisconsin.)

- ☒ No
☐ Yes. Make sure you fill out *Schedule H: Your Codebtors* (Official Form 106H).

Part 2 Explain the Sources of Your Income

4. Did you have any income from employment or from operating a business during this year or the two previous calendar years?

Fill in the total amount of income you received from all jobs and all businesses, including part-time activities. If you are filing a joint case and you have income that you receive together, list it only once under Debtor 1.

- ☒ No
☐ Yes. Fill in the details.

Debtor 1		Debtor 2	
Sources of income Check all that apply.	Gross income (before deductions and exclusions)	Sources of income Check all that apply.	Gross income (before deductions and exclusions)

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)****5. Did you receive any other income during this year or the two previous calendar years?**

Include income regardless of whether that income is taxable. Examples of *other income* are alimony; child support; Social Security; unemployment; and other public benefit payments; pensions; rental income; interest; dividends; money collected from lawsuits; royalties; and gambling and lottery winnings. If you are filing a joint case and you have income that you received together, list it only once under Debtor 1.

List each source and the gross income from each source separately. Do not include income that you listed in line 4.

- ☐ No
- ☐ Yes. Fill in the details.

Debtor 1		Debtor 2	
Sources of income	Gross income from each source	Sources of income	Gross income
Describe below.		Describe below.	
	(before deductions and exclusions)		(before deductions and exclusions)

Part 3: List Certain Payments You Made Before You Filed for Bankruptcy**6. Are either Debtor 1's or Debtor 2's debts primarily consumer debts?**

- ☒ No. **Neither Debtor 1 nor Debtor 2 has primarily consumer debts.** *Consumer debts* are defined in 11 U.S.C. § 101(8) as "incurred by an individual primarily for a personal, family, or household purpose."

During the 90 days before you filed for bankruptcy, did you pay any creditor a total of \$8,575* or more?

- ☒ No. Go to line 7.
- ☐ Yes. List below each creditor to whom you paid a total of \$8,575* or more in one or more payments and the total amount you paid that creditor. Do not include payments for domestic support obligations, such as child support and alimony. Also, do not include payments to an attorney for this bankruptcy case.

* Subject to adjustment on 4/01/28 and every 3 years after that for cases filed on or after the date of adjustment.

- ☐ Yes. **Debtor 1 or Debtor 2 or both have primarily consumer debts.**

During the 90 days before you filed for bankruptcy, did you pay any creditor a total of \$600 or more?

- ☐ No. Go to line 7.
- ☐ Yes. List below each creditor to whom you paid a total of \$600 or more and the total amount you paid that creditor. Do not include payments for domestic support obligations, such as child support and alimony. Also, do not include payments to an attorney for this bankruptcy case.

Creditor's Name and Address	Dates of payment	Total amount paid	Amount you still owe	Was this payment for ...
-----------------------------	------------------	-------------------	----------------------	--------------------------

7. Within 1 year before you filed for bankruptcy, did you make a payment on a debt you owed anyone who was an insider?

Insiders include your relatives; any general partners; relatives of any general partners; partnerships of which you are a general partner; corporations of which you are an officer, director, person in control, or owner of 20% or more of their voting securities; and any managing agent, including one for a business you operate as a sole proprietor. 11 U.S.C. § 101. Include payments for domestic support obligations, such as child support and alimony.

- ☒ No
- ☐ Yes. List all payments to an insider.

Insider's Name and Address	Dates of payment	Total amount paid	Amount you still owe	Reason for this payment
----------------------------	------------------	-------------------	----------------------	-------------------------

8. Within 1 year before you filed for bankruptcy, did you make any payments or transfer any property on account of a debt that benefited an insider?

Include payments on debts guaranteed or cosigned by an insider.

- ☒ No
- ☐ Yes. List all payments to an insider

Insider's Name and Address	Dates of payment	Total amount paid	Amount you still owe	Reason for this payment
				Include creditor's name

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

Part 4: Identify Legal Actions, Repossessions, and Foreclosures

9. Within 1 year before you filed for bankruptcy, were you a party in any lawsuit, court action, or administrative proceeding?

List all such matters, including personal injury cases, small claims actions, divorces, collection suits, paternity actions, support or custody modifications, and contract disputes.

☐ No

☒ Yes. Fill in the details.

Case title Case number	Nature of the case	Court or agency	Status of the case
B.B., Plaintiff v. S. Bradley Mell, et al., Defendants Kimberly Ruggles Mell, et al., Third-Party Plaintiffs v. D.D. and E.E., Third-Party Defendants Docket No. ESX-L-007200-19	Civil	NJ Superior Court, Essex County	☒ Pending ☐ On appeal ☐ Concluded
Steven Mell v. Toscano Law Docket No. ESX-L-004560-24		NJ Superior Court, Essex County	☐ Pending ☐ On appeal ☒ Concluded
Steven Mell v. Guardian Insurance Case No. 3:25-cv-01515-ZNQ-RLS	Reinstatement of long-term disability insurance policy	US District Court, DNJ	☒ Pending ☐ On appeal ☐ Concluded

10. Within 1 year before you filed for bankruptcy, was any of your property repossessed, foreclosed, garnished, attached, seized, or levied?
Check all that apply and fill in the details below.

☒ No. Go to line 11.

☐ Yes. Fill in the information below.

Creditor Name and Address	Describe the Property Explain what happened	Date	Value of the property
---------------------------	--	------	--------------------------

11. Within 90 days before you filed for bankruptcy, did any creditor, including a bank or financial institution, set off any amounts from your accounts or refuse to make a payment because you owed a debt?

☒ No

☐ Yes. Fill in the details.

Creditor Name and Address	Describe the action the creditor took	Date action was taken	Amount
---------------------------	---------------------------------------	--------------------------	--------

12. Within 1 year before you filed for bankruptcy, was any of your property in the possession of an assignee for the benefit of creditors, a court-appointed receiver, a custodian, or another official?

☒ No

☐ Yes

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)****Part 5: List Certain Gifts and Contributions**

13. Within 2 years before you filed for bankruptcy, did you give any gifts with a total value of more than \$600 per person?

☐ No☐ Yes. Fill in the details for each gift.

Gifts with a total value of more than \$600 per person

Describe the gifts

Dates you gave the gifts

Value

Person to Whom You Gave the Gift and Address:

14. Within 2 years before you filed for bankruptcy, did you give any gifts or contributions with a total value of more than \$600 to any charity?

☐ No☐ Yes. Fill in the details for each gift or contribution.

Gifts or contributions to charities that total more than \$600

Describe what you contributed

Dates you contributed

Value

Charity's Name

Address (Number, Street, City, State and ZIP Code)

Part 6: List Certain Losses

15. Within 1 year before you filed for bankruptcy or since you filed for bankruptcy, did you lose anything because of theft, fire, other disaster, or gambling?

☐ No☐ Yes. Fill in the details.

Describe the property you lost and how the loss occurred

Describe any insurance coverage for the loss

Include the amount that insurance has paid. List pending insurance claims on line 33 of *Schedule A/B: Property*.

Date of your loss

Value of property lost

Part 7: List Certain Payments or Transfers

16. Within 1 year before you filed for bankruptcy, did you or anyone else acting on your behalf pay or transfer any property to anyone you consulted about seeking bankruptcy or preparing a bankruptcy petition?

Include any attorneys, bankruptcy petition preparers, or credit counseling agencies for services required in your bankruptcy.

☐ No☐ Yes. Fill in the details.

Person Who Was Paid Address

Email or website address

Person Who Made the Payment, if Not You

Description and value of any property transferred

Date payment or transfer was made

Amount of payment

17. Within 1 year before you filed for bankruptcy, did you or anyone else acting on your behalf pay or transfer any property to anyone who promised to help you deal with your creditors or to make payments to your creditors?

Do not include any payment or transfer that you listed on line 16.

☐ No☐ Yes. Fill in the details.

Person Who Was Paid Address

Description and value of any property transferred

Date payment or transfer was made

Amount of payment

18. Within 2 years before you filed for bankruptcy, did you sell, trade, or otherwise transfer any property to anyone, other than property transferred in the ordinary course of your business or financial affairs?

Include both outright transfers and transfers made as security (such as the granting of a security interest or mortgage on your property). Do not include gifts and transfers that you have already listed on this statement.

☐ No☐ Yes. Fill in the details.

Person Who Received Transfer Address

Description and value of property transferred

Describe any property or payments received or debts paid in exchange

Date transfer was made

Person's relationship to you

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)**

19. Within 10 years before you filed for bankruptcy, did you transfer any property to a self-settled trust or similar device of which you are a beneficiary? (These are often called *asset-protection devices*.)

- ☐ No
☐ Yes. Fill in the details.

Name of trust	Description and value of the property transferred	Date Transfer was made
---------------	---	------------------------

Part 8: List of Certain Financial Accounts, Instruments, Safe Deposit Boxes, and Storage Units

20. Within 1 year before you filed for bankruptcy, were any financial accounts or instruments held in your name, or for your benefit, closed, sold, moved, or transferred?
 Include checking, savings, money market, or other financial accounts; certificates of deposit; shares in banks, credit unions, brokerage houses, pension funds, cooperatives, associations, and other financial institutions.

- ☐ No
☐ Yes. Fill in the details.

Name of Financial Institution and Address (Number, Street, City, State and ZIP Code)	Last 4 digits of account number	Type of account or instrument	Date account was closed, sold, moved, or transferred	Last balance before closing or transfer
--	---------------------------------	-------------------------------	--	---

21. Do you now have, or did you have within 1 year before you filed for bankruptcy, any safe deposit box or other depository for securities, cash, or other valuables?

- ☐ No
☐ Yes. Fill in the details.

Name of Financial Institution Address (Number, Street, City, State and ZIP Code)	Who else had access to it? Address (Number, Street, City, State and ZIP Code)	Describe the contents	Do you still have it?
--	---	-----------------------	-----------------------

22. Have you stored property in a storage unit or place other than your home within 1 year before you filed for bankruptcy?

- ☐ No
☐ Yes. Fill in the details.

Name of Storage Facility Address (Number, Street, City, State and ZIP Code)	Who else has or had access to it? Address (Number, Street, City, State and ZIP Code)	Describe the contents	Do you still have it?
---	--	-----------------------	-----------------------

Part 9: Identify Property You Hold or Control for Someone Else

23. Do you hold or control any property that someone else owns? Include any property you borrowed from, are storing for, or hold in trust for someone.

- ☐ No
☐ Yes. Fill in the details.

Owner's Name Address (Number, Street, City, State and ZIP Code)	Where is the property? (Number, Street, City, State and ZIP Code)	Describe the property	Value
---	---	-----------------------	-------

Part 10: Give Details About Environmental Information

For the purpose of Part 10, the following definitions apply:

- ☐ **Environmental law** means any federal, state, or local statute or regulation concerning pollution, contamination, releases of hazardous or toxic substances, wastes, or material into the air, land, soil, surface water, groundwater, or other medium, including statutes or regulations controlling the cleanup of these substances, wastes, or material.
- ☐ **Site** means any location, facility, or property as defined under any environmental law, whether you now own, operate, or utilize it or used to own, operate, or utilize it, including disposal sites.
- ☐ **Hazardous material** means anything an environmental law defines as a hazardous waste, hazardous substance, toxic substance, hazardous material, pollutant, contaminant, or similar term.

Report all notices, releases, and proceedings that you know about, regardless of when they occurred.

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

24. Has any governmental unit notified you that you may be liable or potentially liable under or in violation of an environmental law?

- ☒ No
☐ Yes. Fill in the details.

Name of site Address (Number, Street, City, State and ZIP Code)	Governmental unit Address (Number, Street, City, State and ZIP Code)	Environmental law, if you know it	Date of notice
--	---	-----------------------------------	----------------

25. Have you notified any governmental unit of any release of hazardous material?

- ☒ No
☐ Yes. Fill in the details.

Name of site Address (Number, Street, City, State and ZIP Code)	Governmental unit Address (Number, Street, City, State and ZIP Code)	Environmental law, if you know it	Date of notice
--	---	-----------------------------------	----------------

26. Have you been a party in any judicial or administrative proceeding under any environmental law? Include settlements and orders.

- ☒ No
☐ Yes. Fill in the details.

Case Title Case Number	Court or agency Name Address (Number, Street, City, State and ZIP Code)	Nature of the case	Status of the case
---------------------------	---	--------------------	--------------------

Part 11: Give Details About Your Business or Connections to Any Business

27. Within 4 years before you filed for bankruptcy, did you own a business or have any of the following connections to any business?

- ☐ A sole proprietor or self-employed in a trade, profession, or other activity, either full-time or part-time
☐ A member of a limited liability company (LLC) or limited liability partnership (LLP)
☐ A partner in a partnership
☐ An officer, director, or managing executive of a corporation
☐ An owner of at least 5% of the voting or equity securities of a corporation

- ☒ No. None of the above applies. Go to Part 12.
☐ Yes. Check all that apply above and fill in the details below for each business.

Business Name Address (Number, Street, City, State and ZIP Code)	Describe the nature of the business Name of accountant or bookkeeper	Employer Identification number Do not include Social Security number or ITIN. Dates business existed
--	---	--

28. Within 2 years before you filed for bankruptcy, did you give a financial statement to anyone about your business? Include all financial institutions, creditors, or other parties.

- ☒ No
☐ Yes. Fill in the details below.

Name Address (Number, Street, City, State and ZIP Code)	Date Issued
---	-------------

Debtor 1 Steven Bradley Mell

Case number (if known) 26-16834 (EOH)

Part 12: Sign Below

I have read the answers on this *Statement of Financial Affairs* and any attachments, and I declare under penalty of perjury that the answers are true and correct. I understand that making a false statement, concealing property, or obtaining money or property by fraud in connection with a bankruptcy case can result in fines up to \$250,000, or imprisonment for up to 20 years, or both. 18 U.S.C. §§ 152, 1341, 1519, and 3571.

/s/ Steven Bradley Mell

Steven Bradley Mell
Signature of Debtor 1

Signature of Debtor 2

Date June 25, 2026

Date _____

Did you attach additional pages to *Your Statement of Financial Affairs for Individuals Filing for Bankruptcy* (Official Form 107)?

☒ No

☐ Yes

Did you pay or agree to pay someone who is not an attorney to help you fill out bankruptcy forms?

☒ No

☐ Yes. Name of Person _____. Attach the *Bankruptcy Petition Preparer's Notice, Declaration, and Signature* (Official Form 119).

Fill in this information to identify your case:

Debtor 1 Steven Bradley Mell
First Name Middle Name Last Name

Debtor 2
(Spouse if, filing) First Name Middle Name Last Name

United States Bankruptcy Court for the: DISTRICT OF NEW JERSEY

Case number 26-16834 (EOH)
(if known)

☐ Check if this is an amended filing

Official Form 108 Statement of Intention for Individuals Filing Under Chapter 7

12/15

If you are an individual filing under chapter 7, you must fill out this form if:

- ☒ creditors have claims secured by your property, or
- ☒ you have leased personal property and the lease has not expired.

You must file this form with the court within 30 days after you file your bankruptcy petition or by the date set for the meeting of creditors, whichever is earlier, unless the court extends the time for cause. You must also send copies to the creditors and lessors you list on the form

If two married people are filing together in a joint case, both are equally responsible for supplying correct information. Both debtors must sign and date the form.

Be as complete and accurate as possible. If more space is needed, attach a separate sheet to this form. On the top of any additional pages, write your name and case number (if known).

Part 1: List Your Creditors Who Have Secured Claims

1. For any creditors that you listed in Part 1 of Schedule D: Creditors Who Have Claims Secured by Property (Official Form 106D), fill in the information below.

Identify the creditor and the property that is collateral	What do you intend to do with the property that secures a debt?	Did you claim the property as exempt on Schedule C?
Creditor's name:	☐ Surrender the property.	☐ No
Description of property securing debt:	☐ Retain the property and redeem it.	☐ Yes
	☐ Retain the property and enter into a <i>Reaffirmation Agreement</i> .	
	☐ Retain the property and [explain]:	
Creditor's name:	☐ Surrender the property.	☐ No
Description of property securing debt:	☐ Retain the property and redeem it.	☐ Yes
	☐ Retain the property and enter into a <i>Reaffirmation Agreement</i> .	
	☐ Retain the property and [explain]:	
Creditor's name:	☐ Surrender the property.	☐ No
Description of property securing debt:	☐ Retain the property and redeem it.	☐ Yes
	☐ Retain the property and enter into a <i>Reaffirmation Agreement</i> .	
	☐ Retain the property and [explain]:	
Creditor's name:	☐ Surrender the property.	☐ No

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

name:

☐ Retain the property and redeem it.

☐ Yes

Description of
property

☐ Retain the property and enter into a
Reaffirmation Agreement.

securing debt:

☐ Retain the property and [explain]:

Part 2: List Your Unexpired Personal Property Leases

For any unexpired personal property lease that you listed in Schedule G: Executory Contracts and Unexpired Leases (Official Form 106G), fill in the information below. Do not list real estate leases. Unexpired leases are leases that are still in effect; the lease period has not yet ended. You may assume an unexpired personal property lease if the trustee does not assume it. 11 U.S.C. § 365(p)(2).

Describe your unexpired personal property leases

Will the lease be assumed?

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Lessor's name:

☐ No

Description of leased

Property:

☐ Yes

Part 3: Sign Below

Under penalty of perjury, I declare that I have indicated my intention about any property of my estate that secures a debt and any personal property that is subject to an unexpired lease.

X /s/ Steven Bradley Mell

X _____

Steven Bradley Mell

Signature of Debtor 2

Signature of Debtor 1

Date June 25, 2026

Date _____

Fill in this information to identify your case:

Debtor 1 Steven Bradley Mell

Debtor 2 _____
(Spouse, if filing)

United States Bankruptcy Court for the: District of New Jersey

Case number 26-16834 (EOH)
(if known)

Check one box only as directed in this form and in Form 122A-1Supp:

- ☒ 1. There is no presumption of abuse
- ☐ 2. The calculation to determine if a presumption of abuse applies will be made under *Chapter 7 Means Test Calculation* (Official Form 122A-2).
- ☐ 3. The Means Test does not apply now because of qualified military service but it could apply later.
- ☐ Check if this is an amended filing

Official Form 122A - 1

Chapter 7 Statement of Your Current Monthly Income

12/19

Be as complete and accurate as possible. If two married people are filing together, both are equally responsible for being accurate. If more space is needed, attach a separate sheet to this form. Include the line number to which the additional information applies. On the top of any additional pages, write your name and case number (if known). If you believe that you are exempted from a presumption of abuse because you do not have primarily consumer debts or because of qualifying military service, complete and file *Statement of Exemption from Presumption of Abuse Under § 707(b)(2)* (Official Form 122A-1Supp) with this form.

Part 1: Calculate Your Current Monthly Income

1. What is your marital and filing status? Check one only.

- ☒ **Not married.** Fill out Column A, lines 2-11.
- ☐ **Married and your spouse is filing with you.** Fill out both Columns A and B, lines 2-11.
- ☐ **Married and your spouse is NOT filing with you. You and your spouse are:**
- ☐ **Living in the same household and are not legally separated.** Fill out both Columns A and B, lines 2-11.
- ☐ **Living separately or are legally separated.** Fill out Column A, lines 2-11; do not fill out Column B. By checking this box, you declare under penalty of perjury that you and your spouse are legally separated under nonbankruptcy law that applies or that you and your spouse are living apart for reasons that do not include evading the Means Test requirements. 11 U.S.C § 707(b)(7)(B).

Fill in the average monthly income that you received from all sources, derived during the 6 full months before you file this bankruptcy case. 11 U.S.C. § 101(10A). For example, if you are filing on September 15, the 6-month period would be March 1 through August 31. If the amount of your monthly income varied during the 6 months, add the income for all 6 months and divide the total by 6. Fill in the result. Do not include any income amount more than once. For example, if both spouses own the same rental property, put the income from that property in one column only. If you have nothing to report for any line, write \$0 in the space.

	Column A Debtor 1	Column B Debtor 2 or non-filing spouse
2. Your gross wages, salary, tips, bonuses, overtime, and commissions (before all payroll deductions).	\$ 0.00	\$
3. Alimony and maintenance payments. Do not include payments from a spouse if Column B is filled in.	\$ 0.00	\$
4. All amounts from any source which are regularly paid for household expenses of you or your dependents, including child support. Include regular contributions from an unmarried partner, members of your household, your dependents, parents, and roommates. Include regular contributions from a spouse only if Column B is not filled in. Do not include payments you listed on line 3.	\$ 0.00	\$
5. Net income from operating a business, profession, or farm		
	Debtor 1	
Gross receipts (before all deductions)	\$ 0.00	
Ordinary and necessary operating expenses	-\$ 0.00	
Net monthly income from a business, profession, or farm	\$ 0.00	Copy here -> \$ 0.00
6. Net income from rental and other real property		
	Debtor 1	
Gross receipts (before all deductions)	\$ 0.00	
Ordinary and necessary operating expenses	-\$ 0.00	
Net monthly income from rental or other real property	\$ 0.00	Copy here -> \$ 0.00
7. Interest, dividends, and royalties	\$ 0.00	\$

Debtor 1 **Steven Bradley Mell**Case number (if known) **26-16834 (EOH)**Column A
Debtor 1Column B
Debtor 2 or
non-filing spouse**8. Unemployment compensation**\$ **0.00**

\$

Do not enter the amount if you contend that the amount received was a benefit under the Social Security Act. Instead, list it here:

For you \$ **0.00**

For your spouse \$

- 9. Pension or retirement income.** Do not include any amount received that was a benefit under the Social Security Act. Also, except as stated in the next sentence, do not include any compensation, pension, pay, annuity, or allowance paid by the United States Government in connection with a disability, combat-related injury or disability, or death of a member of the uniformed services. If you received any retired pay paid under chapter 61 of title 10, then include that pay only to the extent that it does not exceed the amount of retired pay to which you would otherwise be entitled if retired under any provision of title 10 other than chapter 61 of that title.

\$ **0.00**

\$

- 10. Income from all other sources not listed above.** Specify the source and amount. Do not include any benefits received under the Social Security Act; payments received as a victim of a war crime, a crime against humanity, or international or domestic terrorism; or compensation pension, pay, annuity, or allowance paid by the United States Government in connection with a disability, combat-related injury or disability, or death of a member of the uniformed services. If necessary, list other sources on a separate page and put the total below..

\$ **0.00**

\$

\$ **0.00**

\$

+ \$ **0.00**

\$

Total amounts from separate pages, if any.

- 11. Calculate your total current monthly income.** Add lines 2 through 10 for each column. Then add the total for Column A to the total for Column B.

\$ **0.00**

+ \$

= \$ **0.00**Total current monthly
income**Part 2: Determine Whether the Means Test Applies to You**

- 12. Calculate your current monthly income for the year.** Follow these steps:

12a. Copy your total current monthly income from line 11 **Copy line 11 here=>**\$ **0.00**

Multiply by 12 (the number of months in a year)

x 12

12b. The result is your annual income for this part of the form

12b. \$ **0.00**

- 13. Calculate the median family income that applies to you.** Follow these steps:

Fill in the state in which you live.

NJ

Fill in the number of people in your household.

1

Fill in the median family income for your state and size of household.

13. \$ **87,173.00**

To find a list of applicable median income amounts, go online using the link specified in the separate instructions for this form. This list may also be available at the bankruptcy clerk's office.

- 14. How do the lines compare?**

14a. ☒ Line 12b is less than or equal to line 13. On the top of page 1, check box 1, *There is no presumption of abuse.* Go to Part 3. Do NOT fill out or file Official Form 122A-2.

14b. ☐ Line 12b is more than line 13. On the top of page 1, check box 2, *The presumption of abuse is determined by Form 122A-2.* Go to Part 3 and fill out Form 122A-2.

Part 3: Sign Below

By signing here, I declare under penalty of perjury that the information on this statement and in any attachments is true and correct.

X /s/ Steven Bradley Mell**Steven Bradley Mell**

Signature of Debtor 1

Debtor 1 **Steven Bradley Mell**

Case number (if known) **26-16834 (EOH)**

Date **June 25, 2026**

MM / DD / YYYY

If you checked line 14a, do NOT fill out or file Form 122A-2.

If you checked line 14b, fill out Form 122A-2 and file it with this form.

Notice Required by 11 U.S.C. § 342(b) for Individuals Filing for Bankruptcy (Form 2010)

This notice is for you if:

You are an individual filing for bankruptcy,
and

Your debts are primarily consumer debts.
Consumer debts are defined in 11 U.S.C.
§ 101(8) as "incurred by an individual
primarily for a personal, family, or
household purpose."

The types of bankruptcy that are available to individuals

Individuals who meet the qualifications may file under
one of four different chapters of Bankruptcy Code:

Chapter 7 - Liquidation

Chapter 11 - Reorganization

Chapter 12 - Voluntary repayment plan
for family farmers or
fishermen

Chapter 13 - Voluntary repayment plan
for individuals with regular
income

**You should have an attorney review your
decision to file for bankruptcy and the choice of
chapter.**

Chapter 7: Liquidation

\$245 filing fee

\$78 administrative fee

+ \$15 trustee surcharge

\$338 total fee

Chapter 7 is for individuals who have financial difficulty preventing them from paying their debts and who are willing to allow their non-exempt property to be used to pay their creditors. The primary purpose of filing under chapter 7 is to have your debts discharged. The bankruptcy discharge relieves you after bankruptcy from having to pay many of your pre-bankruptcy debts. Exceptions exist for particular debts, and liens on property may still be enforced after discharge. For example, a creditor may have the right to foreclose a home mortgage or repossess an automobile.

However, if the court finds that you have committed certain kinds of improper conduct described in the Bankruptcy Code, the court may deny your discharge.

You should know that even if you file chapter 7 and you receive a discharge, some debts are not discharged under the law. Therefore, you may still be responsible to pay:

most taxes;

most student loans;

domestic support and property settlement obligations;

most fines, penalties, forfeitures, and criminal restitution obligations; and

certain debts that are not listed in your bankruptcy papers.

You may also be required to pay debts arising from:

fraud or theft;

fraud or defalcation while acting in breach of fiduciary capacity;

intentional injuries that you inflicted; and

death or personal injury caused by operating a motor vehicle, vessel, or aircraft while intoxicated from alcohol or drugs.

If your debts are primarily consumer debts, the court can dismiss your chapter 7 case if it finds that you have enough income to repay creditors a certain amount. You must file *Chapter 7 Statement of Your Current Monthly Income* (Official Form 122A-1) if you are an individual filing for bankruptcy under chapter 7. This form will determine your current monthly income and compare whether your income is more than the median income that applies in your state.

If your income is not above the median for your state, you will not have to complete the other chapter 7 form, the *Chapter 7 Means Test Calculation* (Official Form 122A-2).

If your income is above the median for your state, you must file a second form—the *Chapter 7 Means Test Calculation* (Official Form 122A-2). The calculations on the form—sometimes called the *Means Test*—deduct from your income living expenses and payments on certain debts to determine any amount available to pay unsecured creditors. If

your income is more than the median income for your state of residence and family size, depending on the results of the *Means Test*, the U.S. trustee, bankruptcy administrator, or creditors can file a motion to dismiss your case under § 707(b) of the Bankruptcy Code. If a motion is filed, the court will decide if your case should be dismissed. To avoid dismissal, you may choose to proceed under another chapter of the Bankruptcy Code.

If you are an individual filing for chapter 7 bankruptcy, the trustee may sell your property to pay your debts, subject to your right to exempt the property or a portion of the proceeds from the sale of the property. The property, and the proceeds from property that your bankruptcy trustee sells or liquidates that you are entitled to, is called *exempt property*. Exemptions may enable you to keep your home, a car, clothing, and household items or to receive some of the proceeds if the property is sold.

Exemptions are not automatic. To exempt property, you must list it on *Schedule C: The Property You Claim as Exempt* (Official Form 106C). If you do not list the property, the trustee may sell it and pay all of the proceeds to your creditors.

Chapter 11: Reorganization

	\$1,167	filing fee
+	\$571	administrative fee
	\$1,738	total fee

Chapter 11 is often used for reorganizing a business, but is also available to individuals. The provisions of chapter 11 are too complicated to summarize briefly.

Read These Important Warnings

Because bankruptcy can have serious long-term financial and legal consequences, including loss of your property, you should hire an attorney and carefully consider all of your options before you file. Only an attorney can give you legal advice about what can happen as a result of filing for bankruptcy and what your options are. If you do file for bankruptcy, an attorney can help you fill out the forms properly and protect you, your family, your home, and your possessions.

Although the law allows you to represent yourself in bankruptcy court, you should understand that many people find it difficult to represent themselves successfully. The rules are technical, and a mistake or inaction may harm you. If you file without an attorney, you are still responsible for knowing and following all of the legal requirements.

You should not file for bankruptcy if you are not eligible to file or if you do not intend to file the necessary documents.

Bankruptcy fraud is a serious crime; you could be fined and imprisoned if you commit fraud in your bankruptcy case. Making a false statement, concealing property, or obtaining money or property by fraud in connection with a bankruptcy case can result in fines up to \$250,000, or imprisonment for up to 20 years, or both. 18 U.S.C. §§ 152, 1341, 1519, and 3571.

Chapter 12: Repayment plan for family farmers or fishermen

	\$200	filing fee
+	\$78	administrative fee
	\$278	total fee

Similar to chapter 13, chapter 12 permits family farmers and fishermen to repay their debts over a period of time using future earnings and to discharge some debts that are not paid.

Chapter 13: Repayment plan for individuals with regular income

	\$235	filing fee
+	\$78	administrative fee
	\$313	total fee

Chapter 13 is for individuals who have regular income and would like to pay all or part of their debts in installments over a period of time and to discharge some debts that are not paid. You are eligible for chapter 13 only if your debts are not more than certain dollar amounts set forth in 11 U.S.C. § 109.

Under chapter 13, you must file with the court a plan to repay your creditors all or part of the money that you owe them, usually using your future earnings. If the court approves your plan, the court will allow you to repay your debts, as adjusted by the plan, within 3 years or 5 years, depending on your income and other factors.

After you make all the payments under your plan, many of your debts are discharged. The debts that are not discharged and that you may still be responsible to pay include:

domestic support obligations,

most student loans,

certain taxes,

debts for fraud or theft,

debts for fraud or defalcation while acting in a fiduciary capacity,

most criminal fines and restitution obligations,

certain debts that are not listed in your bankruptcy papers,

certain debts for acts that caused death or personal injury, and

certain long-term secured debts.

Warning: File Your Forms on Time

Section 521(a)(1) of the Bankruptcy Code requires that you promptly file detailed information about your creditors, assets, liabilities, income, expenses and general financial condition. The court may dismiss your bankruptcy case if you do not file this information within the deadlines set by the Bankruptcy Code, the Bankruptcy Rules, and the local rules of the court.

For more information about the documents and their deadlines, go to:
<http://www.uscourts.gov/forms/bankruptcy-forms>

Bankruptcy crimes have serious consequences

If you knowingly and fraudulently conceal assets or make a false oath or statement under penalty of perjury—either orally or in writing—in connection with a bankruptcy case, you may be fined, imprisoned, or both.

All information you supply in connection with a bankruptcy case is subject to examination by the Attorney General acting through the Office of the U.S. Trustee, the Office of the U.S. Attorney, and other offices and employees of the U.S. Department of Justice.

Make sure the court has your mailing address

The bankruptcy court sends notices to the mailing address you list on *Voluntary Petition for Individuals Filing for Bankruptcy* (Official Form 101). To ensure that you receive information about your case, Bankruptcy Rule 4002 requires that you notify the court of any changes in your address.

A married couple may file a bankruptcy case together—called a *joint case*. If you file a joint case and each spouse lists the same mailing address on the bankruptcy petition, the bankruptcy court generally will mail you and your spouse one copy of each notice, unless you file a statement with the court asking that each spouse receive separate copies.

Understand which services you could receive from credit counseling agencies

The law generally requires that you receive a credit counseling briefing from an approved credit counseling agency. 11 U.S.C. § 109(h). If you are filing a joint case, both spouses must receive the briefing. With limited exceptions, you must receive it within the 180 days **before** you file your bankruptcy petition. This briefing is usually conducted by telephone or on the Internet.

In addition, after filing a bankruptcy case, you generally must complete a financial management instructional course before you can receive a discharge. If you are filing a joint case, both spouses must complete the course.

You can obtain the list of agencies approved to provide both the briefing and the instructional course from:
<http://www.uscourts.gov/services-forms/bankruptcy/credit-counseling-and-debtor-education-courses>.

In Alabama and North Carolina, go to:
<http://www.uscourts.gov/services-forms/bankruptcy/credit-counseling-and-debtor-education-courses>.

If you do not have access to a computer, the clerk of the bankruptcy court may be able to help you obtain the list.

B2030 (Form 2030) (12/25)

**United States Bankruptcy Court
District of New Jersey**

In re **Steven Bradley Mell**

Debtor(s)

Case No. **26-16834 (EOH)**

Chapter **7**

DISCLOSURE OF COMPENSATION OF ATTORNEY FOR DEBTOR(S)

1. Pursuant to 11 U.S.C. § 329(a) and Fed. Bankr. P. 2016(b), I certify that I am the attorney for the above named debtor(s) and that compensation paid to me within one year before the filing of the petition in bankruptcy, or agreed to be paid to me, for services rendered or to be rendered on behalf of the debtor(s) in contemplation of or in connection with the bankruptcy case is as follows:

For legal services, I have agreed to accept

For preparing and filing the bankruptcy petition, schedules, and statement of financial affairs and appearing at the 341(a) Meeting of Creditors, McManimon, Scotland & Baumann, LLC ("MS&B"), received a \$5,000 retainer. If additional representation is required, payment will be as detailed in a retainer agreement executed by Debtor on May 26, 2026 ("Retainer Agreement").

Prior to the filing of this statement I have received **\$5,000**

Balance Due

2. The source of the compensation paid to me was:

☐ Debtor



Other (specify):

Debtor's brother, Courtney (a/k/a Peter) Mell

3. The source of compensation to be paid to me is:

☒ Debtor



Other (specify):

4. ☒ I have not agreed to share the above-disclosed compensation with any other person unless they are members and associates of my law firm.



I have agreed to share the above-disclosed compensation with a other person or persons who are not members or associates of my law firm. A copy of the agreement, together with a list of the names of the people sharing in the compensation is attached.

5. Subject to any applicable local rule or court order, in return for the above-disclosed fee, I have agreed to render legal service for the following aspects of the bankruptcy case, except as excluded in Section 6:

- a. Analysis of the debtor's financial situation, and rendering advice to the debtor in determining whether to file a petition in bankruptcy;
- b. Preparation and filing of any petition, schedules, statement of affairs and plan which may be required;
- c. Representation of the debtor at the meeting of creditors and confirmation hearing, and any adjourned hearings thereof;
- d. [List other services that counsel has agreed to provide]

As described above.

6. By agreement with the debtor(s), the above-disclosed fee does not include the following service:

Addressing any motions or adversary proceedings; such representation will be pursuant to the Retainer Agreement.

CERTIFICATION

I certify that the foregoing is a complete statement of any agreement or arrangement for payment to me for representation of the debtor(s) in this bankruptcy proceeding.

June 24, 2026

Date

/s/ Anthony Sodono, III

Anthony Sodono, III

Signature of Attorney

McManimon, Scotland & Baumann, LLC

75 Livingston Avenue, Ste. 201

Roseland, NJ 07068

973-622-1800 Fax: 973-712-1463

asodono@msbnj.com

Name of law firm

Tab A-4

Doc. 8 — Motion to Dismiss Bankruptcy Case (Nagel Rice, LLP,
on behalf of B.B.)

Tab A-4

Tab A-5

Transcript of Hearing on Motion to Dismiss — May 15, 2026

Tab A-5

B.B.,	:	
	:	
Plaintiff,	:	
	:	
v.	:	
	:	
S. BRADLEY MELL, KIMBERLY	:	
RUGGLES MELL, individually,	:	
and as guardian of W.M.,	:	
W.H. MELL ASSOCIATES, INC.,	:	
GULFSTREAM CM, L.L.C.,	:	
GULFSTREAM GM, L.L.C., AERO	:	
CARE SERVICES, L.L.C.,	:	
EMILY MELL, ELIZA MELL,	:	
STEVEN BRADLEY MELL 2012	:	
FAMILY TRUST, KIMBERLY MELL	:	TRANSCRIPT
2012 FAMILY TRUST, and	:	
MOUNTAINSIDE SECURITIES,	:	OF
LLC,	:	
	:	
Defendants.	:	MOTION

KIMBERLY RUGGLES MELL,	:	
STEVEN BRADLEY MELL 2012	:	
FAMILY TRUST, GULFSTREAM	:	
CM, L.L.C., GULFSTREAM GM,	:	
L.L.C., AERO CARE SERVICES,	:	
L.L.C., EMILY MELL, ELIZA	:	
MELL, KIMBERLY MELL 2012	:	
FAMILY TRUST,	:	
	:	
Third-party Plaintiffs,	:	
	:	
v.	:	
	:	
D.D. and E.E.,	:	
	:	
Third-party Defendants.	:	

Place: Essex County Superior Court
470 Dr. Martin Luther King,
Jr. Blvd.
Newark, NJ 07102

Date: May 15, 2026

BEFORE:

HONORABLE ROBERT H. GARDNER, J.S.C.

TRANSCRIPT ORDERED BY:

STEVEN BRADLEY MELL, PRO SE
PO BOX 835
FAR HILLS, NJ 7931

APPEARANCES:

MICHAEL J. PARAGANO, ESQ. (Nagel Rice, LLP)
Attorney for Plaintiff B.B.

STEVEN BRADLEY MELL, PRO SE
Defendant Appearing Pro Se

NATALIANA A. GUIDA, ESQ.
ROBERT T. EVERS, ESQ.
(Marshall Dennehey Warner Coleman & Goggin, PC)
Attorneys for Third-party Defendants D.D. and E.E.

RICHARD A. GREIFINGER, ESQ. (Law Offices of
Richard A. Greifinger)
Attorney for C.C., a witness

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I N D E X

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By Ms. Guida	15
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 <u>MOTION</u>	
By Mr. Paragano	31
<u>THE COURT</u> : Decision	32

1 (Proceeding in session at 1:37:40 p.m.)
2 THE COURT: All right. Good afternoon. This
3 is B.B. v. Mell, et al., which is ESX-L-7200-19. It's
4 May 15th of 2026. This is Judge Robert H. Gardner,
5 Superior Court, Law Division, Essex County Civil
6 Division.
7 Counsel, enter appearances for the record,
8 please. Plaintiff?
9 MR. PARAGANO: Good afternoon, Your Honor.
10 Michael Paragano, Nagel Rice, on behalf of
11 the plaintiff, B.B.
12 THE COURT: Good afternoon.
13 MS. GUIDA: Good afternoon, Your Honor.
14 Nataliana Guida, with my partner, Bob Evers,
15 Marshall Dennehey, for Third-Party Defendants D.D. and
16 E.E.
17 THE COURT: All right. Richard, do you want
18 to enter appearance, or --
19 MR. GREIFINGER: I represent an interested
20 non-party. I would ask, because I can't hear so well,
21 if I could --
22 THE COURT: Sure.
23 MR. GREIFINGER: Thank you.
24 THE COURT: Mr. Mell?
25 MR. MELL: Yes.

1 S T E V E N B R A D L E Y M E L L, DEFENDANT,
2 SWORN.
3 THE COURT: You're Bradley Mell?
4 MR. MELL: I am. Yes, sir.
5 THE COURT: Thank you, sir. Have a seat.
6 Okay. Mr. Paragano, just to keep things
7 straight here, as you know, this has been a paper chase
8 and an avalanche of very -- I mean, this entire far
9 side -- the record will reflect the entire left side of
10 the bench here is covered in various briefs and
11 submissions and certifications, and I appreciate
12 counsels' efforts in that regard.
13 I mean, now since we adjourned this,
14 obviously, from last month, I've now prepped this whole
15 thing twice. What's left in this case? I know,
16 obviously, there's issues between Mr. Mell and the
17 third-party defendants. There's cross-motions there.
18 I know a number of people have settled out, including,
19 I believe, the -- Ms. Mell's --
20 MR. PARAGANO: Yeah, Judge --
21 THE COURT: -- trusts.
22 MR. PARAGANO: -- we've settled with
23 everyone, from the plaintiff's perspective, except for
24 Mr. Mell.
25 THE COURT: Okay.

1 MR. PARAGANO: That's the only remaining
2 defendant left.
3 THE COURT: Okay. So Gulfstream's out.
4 MR. PARAGANO: Out.
5 THE COURT: I saw that. Mountain --
6 MR. PARAGANO: The trusts are out.
7 THE COURT: Mountainside's out?
8 MR. PARAGANO: Mountainside is out --
9 THE COURT: Okay.
10 MR. PARAGANO: -- and Ms. Ruggles Mell is
11 also out. So literally every defendant is out. The
12 summary judgements that pertain to us regarding any
13 defendants are completely --
14 THE COURT: Withdrawn.
15 MR. PARAGANO: -- withdrawn.
16 THE COURT: I --
17 MR. PARAGANO: So the real -- the only
18 motions on today are between third-party defendants and
19 Mr. Mell.
20 THE COURT: Okay. All right.
21 MR. PARAGANO: That's it.
22 THE COURT: And there's cross-motions for
23 summary judgement in that regard?
24 MR. PARAGANO: Correct.
25 THE COURT: Thank you. As I said, I was

1 prepping all this other stuff, and I couldn't quite
2 figure it out, because I was looking at certain things
3 on eCourts, certain stipulations were coming in, certain
4 letters were coming in, and I wanted to make sure we
5 were all -- we were all really on the same page.
6 All right. So now bear with me two seconds
7 here as I -- that's withdrawn. That's withdrawn. All
8 right. I'll get you there yet, folks. Bear with me.
9 All right.
10 (Pause)
11 THE COURT: All right. There -- as I said,
12 the only remaining aspects would then be then the
13 cross-motions between Defendant/Third-Party Plaintiff
14 Mell and the third-party defendants D.D. and E.E.
15 Just so the record reflects, the briefing was
16 substantial in this matter. The Court has had an
17 opportunity to review all of it. That being the case,
18 whosoever the preference on -- wishes to go first is
19 fine by me.
20 MR. MELL: I'm happy to go first.
21 THE COURT: Mr. Mell, you want to go first?
22 That's fine. Sure.
23 MR. MELL: Is it okay if I sit? I just have
24 sciatica, so standing --
25 THE COURT: Sure.

1 MR. MELL: Thank you.

2 THE COURT: No problem. And to explain, I've
3 read all the papers. As you know, I've been handling
4 this case since 2019.

5 MR. MELL: Absolutely.

6 THE COURT: The Court is intimately familiar
7 with the fact pattern.

8 MR. MELL: So I just -- I wanted to highlight
9 a couple of things.

10 THE COURT: Sure.

11 MR. MELL: But --

12 THE COURT: Absolutely.

13 MR. MELL: Thank you, Your Honor.

14 So before the Court today are two summary
15 judgement motions. As Your Honor is aware, you have
16 granted five separate motions to implead the parents
17 D.D. and E.E. back in late 2023. My liability is not
18 before the Court, the parents' is. I plead guilty. I
19 served my sentence.

20 And, Your Honor, I also want to briefly
21 advise the Court of a recent development in the related
22 New Jersey criminal matter arising from the same
23 subject matter as they used in the case. The Honorable
24 Christopher Gardner -- or Garrenger, of Hunterdon
25 County, has granted an evidentiary hearing to explore

1 whether my guilty plea, the plea agreement, and the
2 related proceedings were ineffective and
3 unconstitutional due to ineffective assistance of
4 counsel.

5 THE COURT: You got to talk a little bit
6 louder, sir.

7 MR. MELL: Okay.

8 THE COURT: Let me explain. As I tell all
9 the witnesses and anyone who testifies, it's a
10 beautiful room with terrible acoustics.

11 MR. MELL: Okay.

12 THE COURT: You got to keep your voice up.

13 MR. MELL: Yep.

14 THE COURT: It may be a little bit unnatural
15 in the sense you may feel like you're shouting. You're
16 not. We just got to make sure that Madam Clerk and the
17 microphone --

18 MR. MELL: Got it.

19 THE COURT: -- picks you up so that it
20 records, okay?

21 MR. MELL: Okay. And I have a copy of that
22 court order for the Court, if you want to see it.

23 What brings us here today is a separate legal
24 action, whether the parents who, by their own
25 admission, learned in February 2016 of what they

1 themselves characterize as an inappropriate situation
2 between their daughter and myself and whom, for the
3 next 16 months, accepted private flights, club
4 memberships, and significant sums of money, whether
5 those parents bear any legal responsibility for what
6 happened to their younger daughter. This is the only
7 question before the Court today.

8 Statute 2A:61B of the CSAA asks whether the
9 parents knowingly permitted and acquiesced. The
10 relevant facts remain undisputed. I intend to show
11 how.

12 Statute -- Your Honor, the New Jersey Sexual
13 -- Child Sexual Abuse Act states that a parent who
14 knowingly permits and acquiesces the sexual abuse of
15 the child is liable. If they committed -- even if they
16 didn't commit abuse themselves, the two words that
17 entirely hold weight in this argument are knowingly and
18 acquiesced.

19 I'd like to walk the Court through the
20 undisputed records. On President's Day 2016, both
21 parents became aware of what they themselves described
22 as an inappropriate relationship involving their
23 daughter, C.C., and myself. This is not in dispute.
24 It is stated in the parents' summary judgement motion
25 dated January 15, page 3 line item 5.

1 They did not read about it. They did not
2 hear a rumor. The mother sat across from me in a
3 private room at the Essex Hunt Club and had direct --
4 and heard directly from me about the relationship.
5 This is the starting point. Not December 4th when the
6 school was called, not when police got involved in late
7 December 2017 but, in fact, February 2016. That's when
8 the clock started.

9 From that moment forward, every decision the
10 parents made was with knowledge in hand. They
11 acknowledged that the situation involving their teenage
12 daughter had occurred, and they themselves
13 characterized it as inappropriate. That is not
14 suspicious. That is not assumption. That is direct
15 uncontested knowledge.

16 The Court needs to take no other words. It
17 is the defendant's own -- it's in defendant's own
18 filing, paragraph 5 of the defendant's statement of
19 material facts.

20 Acquiesces. Your Honor, what did the parents
21 do with the knowledge? They did not contact police,
22 they did not serve any -- they did not sever any
23 contact with me, and they did not take any protective
24 actions whatsoever.

25 Instead, over the next 16 months, they

1 accepted the private plane for an entire -- for their
2 entire family to Maine for college move-in, again to
3 Maine for parents' weekend, flown out of New York City
4 via helicopter piloted by myself after a shopping
5 spree, also paid by myself. This is all in the record,
6 and it's all undisputed.

7 They accepted \$25,000 into the mother's Chase
8 account, an account opened just four weeks before the
9 deposit arrived. They spent every penny of the 25,000,
10 and then fabricated a false record by immediately
11 depositing 25,000 on December 1st, right after Attorney
12 Patrick Whalen filed a motion to compel these --
13 Chase's statements. See Mell summary judgement motion,
14 Exhibit 2.

15 October 21, 2019, the Chase account became
16 insolvent due to the Lowest Intermediate Balance Rule,
17 line 390.

18 On December 1, 2022, D.D. transferred 25,000
19 into this account, line number 802.

20 And on May 1, 2023, D.D. transferred out
21 25,000 to their attorney, Richard Greifinger, line 862.

22 They accepted brokerage accounts funded with
23 \$25,000 each, they accepted concert tickets, they
24 accepted real estate commissions, they accepted
25 sponsorships to an exclusive club of which I was on the

1 board and, critically, with full knowledge of what they
2 themselves characterize as an inappropriate situation
3 with their daughter, they permitted me to take their
4 daughter, B.B., alone to the airport to fund and
5 facilitate private flying lessons. Her parents knew it
6 and approved. This is on the record.

7 Your Honor, the statute does not require
8 these parents wanting anything improper to occur. It
9 requires that they knowingly permitted and acquiesced
10 in the conditions that allowed it. The undisputed
11 record shows exactly that.

12 If there is any remaining doubt about how the
13 mother understood the nature of the relationship, the
14 Court need look no further than her own words.

15 On November 19, 2017, weeks before any police
16 involvement, she texted her daughter and wrote,

17 "I also think he's ready to be done
18 with us. Not get rid of B.B., but
19 done with us, a family unit."

20 Your Honor, the text did not come from a
21 mother who was deceived. It came from a mother who
22 understood exactly what was at stake, and it was not
23 her daughter's safety.

24 Parental immunity. Your Honor, I want to
25 address parental immunity directly. First, the

1 legislature already resolved this question when the
2 legislature drafted the Sexual -- Child Sexual Abuse
3 Act and included the word parent explicitly. It made a
4 deliberate -- made a deliberate choice to create
5 parental liability in exactly this circumstance.
6 Applying immunity here would nullify any legislative
7 choice entirely.

8 This Court does not read the statute to
9 produce certain results, as the statute holds the
10 parents liable and cannot simultaneously immunize them
11 from that liability.

12 Second, even under the Murray test, immunity
13 does not apply. The test requires that the conduct be
14 customary parental supervision pertaining to someone --
15 permitting someone they had direct concerns about to
16 take their younger daughter alone to the airport is not
17 customary supervision. Accepting \$25,000 while
18 maintaining and deepening the social relationship with
19 myself is not customary supervision.

20 This is not a failure to watch closely.
21 This is an affirmative choice repeated over 16 months
22 to maintain the benefits from the relationship they had
23 every reason to scrutinize.

24 Third, even if the Court found the conduct
25 that qualifies as supervision, it meets the willful and

1 wanton standard under Foldi. The parents, who has
2 direct knowledge, who attends a private meeting and
3 then permits 16 months of deepening access while
4 attempting significant financial benefits is not
5 negligence. This is willful disregard of a known risk
6 to their child -- children.

7 Your Honor, the relevant facts are not in
8 dispute. The statute is clear. These parents had
9 direct knowledge of the situation they characterized as
10 inappropriate. For 16 months, they acquiesced and they
11 benefitted.

12 Summary judgement should be entered into my
13 favor on the CSAA claim. Parental immunity does not
14 exist. The contribution and indemnification claim
15 should proceed to trial.

16 Thank you, Your Honor. I'm happy to answer
17 any questions.

18 THE COURT: All right. Thank you, Mr. Mell.
19 Counsel for the --

20 MS. GUIDA: Thank you.

21 THE COURT: -- third-party defendants, when
22 you're ready.

23 MS. GUIDA: Thank you, Your Honor.

24 I agree with Mr. Mell, the statue is clear,
25 and that's where we part in any agreement. The CSAA

1 defines sexual abuse as an act of sexual contact or
2 sexual penetration between a child under the age of 18
3 years and an adult. A parent, foster parent, guardian,
4 or other person standing in loco parentis within the
5 household who knowingly permits or acquiesces in sexual
6 abuse by any other person also commits sexual abuse.
7 That use of an adverb, knowingly permits or acquiesces
8 in the sexual abuse, is clear.

9 What happened in February 2016 had absolutely
10 nothing to do with the plaintiff in this case. It
11 dealt with the relationship with her older sister --
12 the inappropriate relationship that Mell had with her
13 older sister. And we've yet to see, despite I think it
14 was over 2100 days of discovery in this case, any shred
15 of evidence that supports the contention that the
16 parents knew of Mr. Mells abuse of their middle
17 daughter, plaintiff in this case.

18 It cannot be disputed that there's no actual
19 knowledge of Mr. Mell's abuse of plaintiff here. Not a
20 single thing, despite giving Mr. Mell every single
21 benefit of the doubt, has been produced.

22 What we have here, effectively, is a
23 different situation than the time when the third-party
24 -- when the motions for summary judgement dismissing
25 the third-party complaints against my client were

1 filed. All other third-party plaintiffs have settled
2 out of the case, and their third-party complaints have
3 been withdrawn.

4 What's before the Court today is what's left
5 between Mr. Mell and the parents, who asked the Court
6 to find that he is entitled to monetary benefit because
7 his victim's parents failed to stop him from committing
8 the abuse. That is why we are here today, and none of
9 us would be in this room today if it were not for
10 Mr. Mell.

11 The purpose of the CSAA is to provide victims
12 of child sex abuse -- the legislative intent -- the
13 legislative purpose, is to provide victims of sexual
14 abuse with the opportunity to address the difficulties
15 that they are faced with bringing claims against their
16 abusers. There were certain time limitations
17 associated, the statute of limitations being two years.
18 In the case of child sexual abuse, obviously, it
19 presents various problems with that. And the purpose
20 has to do with compensating the victims, not the
21 abuser.

22 Concerning parental immunity, I can go
23 through -- and I'm not going to belabor the points in
24 the papers -- I can go through it if Your Honor wishes.

25 THE COURT: I've read it all. Counsel, you

1 can make whatever record --

2 MS. GUIDA: I don't feel I need to.

3 THE COURT: -- you want to make, counsel.

4 MS. GUIDA: And I, quite frankly, feel that I
5 don't need to, because what I just heard is just a
6 recitation of Mr. Mell's third-party complaint against
7 my clients. And on the papers, in all of the evidence
8 before Your Honor, there is nothing substantiating any
9 CSAA claims against my clients, and there is nothing
10 which would support stripping them of their right to
11 parental immunity in this case.

12 Because if you look at Foldi -- and Foldi is
13 where we first hear in the case law of the beginning of
14 the aggregation of parental immunity and, as years have
15 gone on, the courts have narrowed that, and narrowed
16 that, and narrowed that down. And in Foldi, the Court
17 placed great emphasis on the --

18 THE COURT: Parental authority and the
19 customary child care. The Court's familiar with Foldi.

20 MS. GUIDA: Beyond that, Your Honor, the
21 importance and protection of the household itself,
22 recognizing that not one child is the same, not one
23 parenting philosophy is the same, and one's
24 experiences, cultural -- life happens. Whatever
25 choices they make, the Court does not want to disturb

1 the parental unit and the decisions made in child
2 rearing.

3 So what I haven't heard from Mr. Mell is
4 anything about proximate cause.

5 THE COURT: Well, counsel, let me stop you.

6 MS. GUIDA: Um-hum.

7 THE COURT: Mr. Mell had some issues with the
8 -- and the third-party plaintiff had issues with regard
9 to C.C., who is the older sister.

10 MS. GUIDA: Correct.

11 THE COURT: And, in fact, the parents knew
12 about that. In fact, I think it's pretty undisputed,
13 the fact that there was some ongoing conversations with
14 regard to -- in the facts with regard to the -- that
15 particular relationship that went on was ultimately
16 revealed and ultimately stopped, and the argument being
17 that obviously that the third-party defendants were
18 somehow on notice of Mr. Mell's proclivities, if you
19 will.

20 Now I understand that that's not necessarily
21 what the CSAA was originally enacted for, but we have
22 to live with the language of the act, whether the
23 legislature -- if there's -- as I have been an intern
24 of the legislature in Connecticut, legislation and --
25 sometimes ends in -- is enacted that has unforeseen

1 consequences -- unforeseen permutations and
2 consequences.

3 This is somewhat of an interesting approach
4 that Mr. Mell is taking in this particular case, but
5 it's not necessarily one that the law seems to not
6 allow for.

7 MS. GUIDA: Well, in my reading, Your Honor,
8 of the CSAA --

9 THE COURT: Well, counsel, here's the problem
10 here, is that, if you will -- I've read all the
11 papers --

12 MS. GUIDA: Um-hum.

13 THE COURT: -- multiple times. The issue
14 here is whether, in fact, the parents acquiesced with
15 regard to what ended up happening or didn't happen in
16 this particular case, and the issue whether, in fact,
17 that acquiescence rises to the level of a willful,
18 wanton act or failure to act that would abrogate
19 parental immunity. That's what the case is about.

20 The problem with that is as soon as we get
21 into what is reasonable and what is willful or wanton,
22 it's a jury trial.

23 MS. GUIDA: Well, Your Honor --

24 THE COURT: Yes, it is, respectfully.

25 MS. GUIDA: I --

1 THE COURT: There's so much --

2 MS. GUIDA: I just want to back up --

3 THE COURT: There is so much --

4 MS. GUIDA: Okay.

5 THE COURT: There is so much, if you will,
6 circumstantial evidence. Obviously, you know, with
7 regard to having sat in criminal, as I did for
8 six-and-a-half years, many a cases have been proven by
9 circumstantial evidence rather than direct evidence.
10 This is a case -- they both are acceptable as means of
11 proof.

12 In this particular case, there's a ton of
13 circumstantial evidence in this case on both sides. So
14 where are we going? I'll hear you.

15 MS. GUIDA: There is nothing in this -- in
16 the plain language of the statute that talks about
17 foreseeability. We don't get to willful -- we don't
18 get to parental immunity if there is CSAA, because we
19 have knowledge there.

20 We're -- they're two separate animals.
21 There's CSAA, and there's parental immunity. They're
22 two separate claims. One's statutory, the CSAA.

23 THE COURT: Um-hum.

24 MS. GUIDA: The other is negligence. And
25 parental immunity, obviously, is the bar to negligence.

1 But looking -- you have to look at them separately.

2 Looking at the CSAA separately, how can you
3 knowingly permit or acquiesce in that which you are not
4 aware is occurring? And if you want -- if you're
5 towing the line, getting into the negligence and
6 parental immunity area --

7 THE COURT: Um-hum.

8 MS. GUIDA: -- and Mr. Mell is going to make
9 the argument that, well, you should have known because
10 of what I was doing in 2016 with your older daughter,
11 you can't even judge -- you cannot judge past judgement
12 on the parents' actions when they have not acted
13 knowingly and consciously that a result may occur,
14 because their actions following learning of the
15 inappropriate relationship with their older daughter
16 were not premised -- were premised upon manipulation,
17 were premised upon deceit, were premised upon the very
18 things that Mr. Mell used to get access to their middle
19 daughter.

20 It is not a standard of perfection. It is
21 not a standard of even mere negligence. We're moving
22 into parental immunity now. It's willful and wanton.

23 And you don't even get to that -- you cannot
24 -- you can't even get there because they are not acting
25 knowingly. They do not -- they are not aware of the

1 state of facts that can allow them to even make a
2 willful or wanton decision because they are being
3 manipulated by the perpetrator himself.

4 The parents -- everybody in that family is a
5 victim in different respects, and the parents fell
6 victim to Mr. Mell's manipulation. They did. And
7 effectively, by allowing this to continue, you are --
8 the Court is rewarding the perpetrator for his success
9 in deceiving the parents.

10 Could they have done things differently? Did
11 they make some mistakes? That is exactly what Foldi
12 talks about.

13 THE COURT: Um-hum.

14 MS. GUIDA: In retrospect, that is exactly
15 what Foldi talks about. That is the purpose of
16 parental immunity, not to question that, because
17 parents don't have a crystal ball, because parents
18 don't have a handbook, because there is no handbook
19 that comes with learning your 16 -- your 17-year-old
20 daughter is an inappropriate -- in an inappropriate
21 relationship with her best friend's father. There's no
22 handbook.

23 My clients handled that the best way they
24 felt that they could. They took her to a therapist.
25 The therapist -- faced with the threat of driving her

1 right into his arms, the mother initiated supervision
2 in the form of tracking her daughter. But afraid of
3 losing her, she -- what do you do?

4 This was the decision -- this was the
5 circumstance. This was the manipulation. And you --
6 they cannot be judged at all, let alone willful or
7 wanton, when that -- actions that they took, the
8 claimed lack of supervision, which is not lack of
9 supervision -- there is supervision, Mr. Mell is
10 thwarting it. Mr. Mell is the one who is coordinating
11 hiding the phone at the friend's. There's a scheme
12 here.

13 And I'll take it -- and to loop it back
14 around to the CSAA, it comes back to that November 19,
15 2017 text message and everything that happens then and
16 there. There is one person in this room who has
17 firsthand knowledge of this case, who has not failed to
18 remind us in almost every single pleading. And at his
19 -- and at Mr. Mell's deposition, when he was asked when
20 it was that the parents first had actual knowledge of
21 his abuse of plaintiff in this case, he pointed to
22 October 2017.

23 And that is the standard under the CSAA.
24 Again, it's not foreseeability. It's not knowledge of
25 a risk. It's not there. If a legislature wanted that

1 to be the standard, it would put it in there, but it
2 didn't.

3 THE COURT: Um-hum.

4 MS. GUIDA: And it's not for a reason. And,
5 look, I don't want to waste time with the papers,
6 because it is laid out I think pretty clearly in my
7 opposition and in my reply brief.

8 But how could my client have known about
9 Mr. Mell's abuse of plaintiff in this case on November
10 19, 2017 or any time before that when you have Mr. Mell
11 himself texting her explaining, I'm sorry, I thought it
12 was okay that I was just talking to her, but I assure
13 you, unlike your older daughter, this was nothing but a
14 friendship, we were just talking.

15 There's no knowledge. There's no
16 acquiescence. There's certainly no permission. She is
17 putting up a wall. She's getting nervous now. She is
18 trying to supervise more and more.

19 There is no -- Your Honor, there is no
20 evidence supporting what the case -- what the statute
21 -- the plain language of the statute requires.

22 THE COURT: Okay.

23 MS. GUIDA: And the last thing I want to
24 address is the parental immunity cases and the line of
25 cases that have been published that do abrogate -- and

1 even those that don't -- didn't contemplate the
2 situation before this Court. They dealt with dog
3 bites. They dealt with gasoline.

4 THE COURT: Um-hum.

5 MS. GUIDA: They dealt with crossing a
6 street. They dealt with inanimate objects who aren't
7 capable of speaking, who aren't capable of lulling prey
8 into an illusion of safety, Your Honor, and that's what
9 we have here.

10 We've heard a lot -- and, again, all I've
11 heard from Mr. Mell today is simply a recitation of his
12 third-party complaint, but what I -- and I will rely on
13 my papers in terms of all of those finer factual
14 points.

15 But if you want to talk about the \$25,000, I
16 do think it -- and the deposits, I do think it
17 certainly is worth mentioning that it was Mr. Mell who
18 deposited the money. He is asking the Court to believe
19 that my client somehow knew about that, asked for it.

20 He just testified -- admitted that she never
21 asked for it. She never directly asked for it. She
22 mentioned that, according to him -- which my client
23 denies -- that they were tight on tuition.

24 THE COURT: Um-hum.

25 MS. GUIDA: They deny that. The two -- the

1 discovery that has been served in this case that is
2 before Your Honor unequivocally demonstrates that the
3 tuition was never paid by Mr. Mell. It was paid by the
4 parents.

5 The money that he deposited -- he went to the
6 bank. He filled out the deposit slip. He cashed the
7 check. She didn't know about it until way down the
8 road. She had no idea, and she never touched that
9 money in the critical time period that Mr. Mell has
10 defined, that prior counsel who is no longer in this
11 case has defined, that everybody has defined.

12 Because what happens after December 4, 2017,
13 has absolutely no bearing on whether or not -- on their
14 claims in this case, whether or not my clients turned
15 the other cheek and allowed the abuse to occur because
16 they were enjoying his benefits.

17 That is part of the manipulation, Judge.
18 That is part of it. He deposited that money on the day
19 he committed the crimes to which he plead guilty in
20 state court.

21 He knew exactly what he was doing. My
22 clients never touched it. That money is in escrow.
23 There's a total of 75 in escrow. He -- Mr. Mell has
24 conceded that my clients never touched the money that
25 was in -- that was in the investment accounts. Never

1 touched it.

2 Same scenario. They didn't ask for that
3 money. That money got put in there. He has abandoned
4 his claims in this case.

5 At his deposition, he testified, I guess -- I
6 guess maybe not, maybe I didn't -- maybe I didn't pay
7 their tuition, because he didn't, Your Honor. There's
8 a lot of red herrings and a lot of snippets that are
9 thrown in his papers in this case, and when you read
10 things in context as a whole, it all comes together.

11 There's no getting rid of us. There's no,
12 maybe he's about to be done with us. If you read the
13 entire string of text message, you can see exactly what
14 she is saying, what my client is intending there.
15 She's trying to get her to stay away from him. Her
16 daughter is asking maybe if I can just be friends with
17 him in the future, or maybe can I just talk to him.
18 She said I think he's ready to be done with us. No.

19 Everything needs to be read in context, and
20 that is what the parental immunity doctrine requires, a
21 case-by-case basis for the trial judge to determine,
22 Your Honor. There's no question of fact for the jury,
23 Judge. Thank you.

24 THE COURT: All right. Thank you, counsel.
25 Mr. Mell, you want to say anything in

1 response?

2 MR. MELL: Just a couple quick things. Yes,
3 I actually, I would say, have firsthand knowledge --

4 THE COURT: You got to talk a little bit
5 louder.

6 MR. MELL: I'm sorry. Yes, I actually have
7 firsthand knowledge. You know, the parents -- I spoke
8 to the mom almost every day. I mean, we had
9 conversations.

10 I mean, for over the 16 months, when they
11 said that the parents didn't know, you know, B.B. slept
12 over at my house in July. I agreed to that. And the
13 parents, you know, text to me saying, you know, oh, I
14 know -- to her, I know where you were last night and
15 I'll talk to Mr. Mell. You know, so they knew in July,
16 you know, that, I mean, there was a potential issue
17 because she was, you know, flying, she stayed over.
18 The parents knew it.

19 The parents, they were so enamored, I would
20 say is the word, of the money, the lifestyle of -- you
21 know, when I was on the board at the Essex Hunt Club
22 and I got them in, you know, there happened to be two
23 cocktail parties and, at that time, I was having a
24 relationship with their older daughter, and they knew
25 it.

1 You know, and it has to be -- you know, you
2 scratch your head with, well, when you're dealing with
3 a board member cocktail party and there are 100 people
4 there, if they had said, oh, by the way, we know
5 Mr. Mell is having a relationship with our daughter --
6 they would never do that in a million years. They
7 redirected. They made the children lie.

8 When [REDACTED]'s -- when B.B.'s phone was found
9 by a friend -- and I think it was Leah who I told her
10 -- and they found a picture of B.B. and myself, the
11 mother was trying to reach out to the parents to say,
12 hey, there's a problem here, and they never did.

13 And then finally, that family said, well, if
14 they're not doing anything about it, we're going to
15 give the picture to the school, and they did. And I
16 accept this. It's wrong on so many levels.

17 The \$25,000, you know, everyone calls it a
18 critical period but, you know, I've been in the
19 investment business forever, and anti-money laundering
20 and fraud is a big deal. When I went to Chase and
21 deposited the money, I was on the phone with the older
22 sister, and the mom on speakerphone, because Chase -- I
23 needed their permission to deposit, and I -- and she
24 gave me her DDA number. I didn't know what her account
25 number was. I can't look that up.

1 Yes, I signed the check. I deposited it. I
2 got a song and dance how the father lost money and, you
3 know, they couldn't pay tuition. And yes, I did offer,
4 and I deposited that money, but it was with their
5 knowledge.

6 And then when you look at, you know, my
7 filing, I did a complete analysis of that, you know,
8 and they -- it floats there, and you -- to say they
9 never touched it is kind of misnomer, because you can
10 deposit money, use it, and then put it back in and say,
11 oops, you know, hey, no harm, no foul. So --

12 THE COURT: I read your brief, sir.

13 MR. MELL: Okay. So -- and I don't blame
14 them, but there's just so much to this case that, you
15 know, the parents need to answer. And if they spent
16 three-and-a-half years going to the New Jersey Supreme
17 Court twice to stop questions, to stop all this, it's
18 because this is going to be a disaster. And, you know,
19 I owned my responsibility, and I will. Okay. That's a
20 fact. But no one else has in this case.

21 And for the -- you know, they knew about it,
22 Your Honor. I don't even know what to say.

23 THE COURT: All right. Thank you, Mr. Mell.

24 MR. PARAGANO: Judge, if I may just make an
25 application to the Court?

1 Mr. Mell just used the real name of my client
2 in open court. It's going to be on the record. If
3 there's any way we can move to strike that.

4 THE COURT: We'll move to have -- move to
5 strike the -- B.B.'s name that was used is granted.
6 All right. So ordered.

7 MR. PARAGANO: Thank you.

8 MR. MELL: Sorry about that.

9 THE COURT: That's all right.

10 MS. GUIDA: Your Honor, may I --

11 MR. EVERS: Just real quick.

12 MS. GUIDA: May I just very briefly?

13 THE COURT: You know there's --

14 MR. EVERS: One minute.

15 THE COURT: -- no such thing as re-redirect
16 in my courtroom, but I'll certainly hear you on
17 argument. Sure.

18 MR. EVERS: Thank you, Judge.

19 MS. GUIDA: Thank you, Judge.

20 THE COURT: Briefly. Briefly, yes.

21 MS. GUIDA: Very briefly, one or two
22 sentences?

23 THE COURT: Sure.

24 MS. GUIDA: Mr. Mell cannot just create
25 issues of fact in oral argument. This is the first

1 time that I'm hearing any of -- many of these things.

2 What's before Your Honor and what Your Honor
3 needs to consider is in the papers and what's supported
4 in the evidence before the Court. That's all. Thank
5 you.

6 THE COURT: All right. The matter comes
7 before the Court on cross-motions for summary
8 judgement.

9 The Court -- we all know there has to be
10 substantial issue of operative fact in order to deny a
11 motion for summary judgement, and reasonable inferences
12 have to occur against the movant, which in this
13 particular case is rather interesting since it's
14 cross-motions for summary judgement. Both motions are
15 denied.

16 The act -- 2A:61B-1(a)(1), the CSAA, the
17 wording is the parent who knowingly permits or
18 acquiesces in sexual abuse by any other person also
19 commits sexual abuse.

20 There's a substantial issue of operative fact
21 here as to whether the parents in fact acquiesced here.
22 And as I said, it may not be direct evidence, but there
23 certainly is circumstantial evidence to at least make
24 an argument of the reasonable inferences against the
25 movant that, in fact, they may have acquiesced in this

1 case, and that motion -- and, therefore, the motion is
2 denied.

3 Also, with regard to parental immunity,
4 there's four elements under the Murray test. Acts or
5 omissions by a parent that a factfinder could
6 reasonably find were the proximate cause of the
7 plaintiff's injury. Certainly, that's obvious in this
8 case.

9 Was conduct protected by parental immunity;
10 does it involve exercising parental authority of the
11 provision of customary child care. I don't think that
12 -- certainly, the argument here would be that what
13 happened here certainly does not fall within parental
14 authority -- or provision of customary child care.

15 C -- or three, does conduct constitute a lack
16 of parental supervision. I think that's kind of an
17 obvious answer.

18 And four, could a factfinder reasonably find
19 that the conduct was willful or wanton through
20 remaining conduct from the -- or from -- removing it
21 from parental immunity. As I said, whether in fact
22 this rises to the level of willful or wanton I think is
23 a jury question and, therefore, I think -- on both
24 sides, the motions are denied.

25 We'll have the matter -- which brings me to

1 my second aspect on my note to myself. I know counsel
2 -- I appreciate the fact that plaintiff's counsel is
3 here. The case was originally listed for next month, I
4 believe, on the 12th. I did get a letter from
5 Mr. Nagel --

6 MR. PARAGANO: It's --

7 THE COURT: -- with regards --

8 MR. PARAGANO: -- the 15th.

9 MR. MELL: The 15th.

10 THE COURT: Or the 15th, whatever that Monday
11 is.

12 MR. PARAGANO: Yeah.

13 THE COURT: I did get a letter from Mr. Nagel
14 indicating, for the plaintiff, that he had another case
15 in front of Judge Semper in federal court and he wanted
16 to move the date up.

17 Now yes, under the rule of -- under summary
18 judgement rules and the rules for scheduling trials,
19 after summary judgement, you have to allow at least 30
20 days unless the Court orders otherwise, and I'm not
21 necessarily inclined to do that unless everyone wants
22 to agree to that. If you want to agree to that --
23 everyone wants to agree to that -- I don't know what
24 you have as far as preparations with regard to
25 witnesses and so forth.

1 I think this trial -- I did trial work for 23
2 years as a lawyer, and so I guess I'm understanding of
3 the stresses and strains involved. So the issue
4 becomes one of moving it earlier. I will certainly
5 talk to Judge Semper about the -- about his issues on
6 that front, although I appreciate the fact that federal
7 court always thinks they have priority over everybody
8 else. But this is also a 2019 case, and I'm sure his
9 case does not date from 2019. But I'll deal with Judge
10 Semper if I have to --

11 MR. PARAGANO: Okay.

12 THE COURT: -- by phone. What's your
13 thoughts, Mr. Paragano?

14 MR. PARAGANO: Yeah. Judge, we thought you
15 denied our request, which we saw on eCourts. That's
16 why we sort of now prepped that we're going to be ready
17 for June, I guess, 15th it is.

18 THE COURT: Well --

19 MR. PARAGANO: So --

20 THE COURT: -- I denied only -- well, there
21 wasn't consensus amongst the parties. Okay.

22 MR. PARAGANO: Right.

23 THE COURT: It's one thing if everybody
24 agrees. Look, we're here. I'm happy to accommodate
25 everybody who wants to show up whoever they want to

1 show up, okay, as long as I don't have another trial
2 going.

3 MR. PARAGANO: Right.

4 THE COURT: But I also understand, you know,
5 time, money, and effort to get these things prepared
6 and get them ready to go to trial. I have some
7 understanding of the client's money and your time.

8 So it depends on how you want to do with it.
9 If everyone wants to agree to a date sooner than that.
10 The week before, I'm not here on the Monday because I
11 have to go to a wedding up in New Hampshire, and I am
12 coming back that day on the 8th.

13 But unless you want to agree to do something
14 on the 1st or the 9th, or -- the 1st is a Monday, the
15 9th is a Tuesday, because I'm gone on Friday the 5th,
16 and then Monday the 8th I will be in New Hampshire.

17 MR. EVERS: I'd do --

18 THE COURT: Mr. Evers, are you going to try
19 -- are you the trial counsel?

20 MR. EVERS: I'm trying the case. Yeah.

21 THE COURT: That's what I figured. So I
22 figure -- what's your thoughts?

23 MR. EVERS: I do not think I can do it
24 earlier.

25 THE COURT: Okay.

1 MR. EVERS: My --
2 THE COURT: Well, I'm not pushing it past
3 June 30th for obvious reasons --
4 MR. EVERS: No, I know. I'm just --
5 THE COURT: -- because we all have to -- we
6 all answer to somebody, and I got to explain a 2019
7 case to the powers that be.
8 MR. EVERS: There's a number of cases I have
9 where we're waiting for NJ PURE to drop their bomb, so
10 to speak.
11 THE COURT: Are they still in business, or
12 are they --
13 MR. EVERS: Yeah, but they're supposed to be
14 filing for bankruptcy --
15 MR. PARAGANO: Bankruptcy.
16 MR. EVERS: -- or whatever it is.
17 THE COURT: Is it your client? It's not
18 your --
19 MR. EVERS: Not my client, no, but they are
20 -- they represent --
21 THE COURT: They're codefendants.
22 MR. EVERS: In other cases I mean.
23 THE COURT: No, no, no, no, I understand.
24 MR. EVERS: Right.
25 THE COURT: That's what I'm asking you.

1 MR. EVERS: Oh, yeah.
2 THE COURT: But they're not your client?
3 MR. EVERS: Yeah, I'm not doing that work.
4 THE COURT: It's not your bill. Okay.
5 MR. EVERS: I ain't doing that.
6 THE COURT: At least you're getting paid.
7 Okay.
8 MR. EVERS: Yes. So I'm not -- I have a
9 number of those cases between now and June 15th, so --
10 in Morristown. Enough said.
11 THE COURT: Well, you can only -- well, you
12 can only do one at a time, Bob. So what are you, you
13 know --
14 MR. EVERS: Thank you. So those may clear
15 up, and they may not. I just -- so I can't commit
16 right now to earlier.
17 THE COURT: Well, okay. Fair enough. I
18 figured I'd ask an obvious --
19 MR. EVERS: Yeah.
20 THE COURT: Look, as I said, I'm happy to
21 accommodate everybody that -- as long as it's
22 reasonable and everyone can agree on a date.
23 MR. PARAGANO: June 15th works for us.
24 THE COURT: All right. Then for -- well, for
25 the moment, we'll leave it on for the 15th. Obviously,

1 if Judge Semper has an issues, you can have Judge
2 Semper call me and we'll --

3 MR. PARAGANO: Okay.

4 THE COURT: -- discuss it amongst the
5 judiciary. I have not done federal work in a while,
6 but I'm sure most of their cases date -- post-date
7 2019. So all right. We'll shoot for the 15th then,
8 and unless something changes, and if that's all, I'll
9 give everybody a note or give everybody a call, or
10 we'll do a conference call or something like that.

11 Obviously, if something changes on your end,
12 Mr. Evers --

13 MR. EVERS: Yeah. Absolutely.

14 THE COURT: -- on your end, Mr. Paragano, on
15 your end, Mr. Mell, let us know. As I said, we're
16 always here, we're happy to accommodate everyone
17 reasonably. Otherwise, we'll set it up for the 15th.
18 Fair enough?

19 MR. PARAGANO: Thank you, Your Honor.

20 MR. MELL: Thank you, Your Honor

21 THE COURT: No problem. I'll enter the
22 appropriate order.

23 Thank you very much, everyone. Everyone have
24 a great weekend.

25 MR. EVERS: Thanks, Judge.

1 MS. GUIDA: Thank you.

2 THE COURT: And now I got to move all this
3 stuff back in to get to recycle it all.

4 (Proceeding adjourned at 2:17:43 p.m.)
5

6 CERTIFICATION
7

8 I, EMILY YOUNG, the assigned transcriber, do hereby
9 certify the foregoing transcript of proceedings on
10 CourtSmart, Index No. from 1:37:40 p.m. to 2:17:43
11 p.m., is prepared to the best of my ability and in full
12 compliance with the current Transcript Format for
13 Judicial Proceedings and is a true and accurate
14 compressed transcript of the proceedings, as recorded.
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16
17 /s/ Emily E. Young

18 Emily E. Young
19 Transcriber in Training

05/20/2026

Date

20
21 /s/ Patricia A. LaMonica

22 Patricia A. LaMonica

AD/T 326

AOC Number

23
24 VOX Transcription Services

25 Agency Name

05/21/2026

Date

Tab A-6

Debtor's Letter to Trustee Sodono re: Case Status

Tab A-6

PRIVILEGED AND CONFIDENTIAL
ATTORNEY-CLIENT COMMUNICATION

June 17, 2026

Anthony Sodono III, Esq.
McManimon, Scotland & Baumann, LLC
75 Livingston Avenue, Suite 201
Roseland, New Jersey 07068

Re: My Chapter 7 / B.B. v. Mell, ESX-L-7200-19 — Factual Defense to Any Willful and Malicious Injury Claim

Dear Anthony,

You are quarterbacking this, and I am not going to pretend to know the bankruptcy side better than you do. What I can do is hand you the one thing I have spent years buried in: the actual record of the civil case. I have read every deposition, every order, every text, every expert report. I know where the bodies are buried and, more to the point, I know where Bruce Nagel has buried evidence that does not help him. Everything I reference in this letter is attached behind a tab so you have it in one place.

This letter lays out the factual defense to any claim that I caused B.B. willful and malicious injury. I understand that to keep this debt from being discharged, Nagel has to prove I acted with the actual intent to injure her, or with substantial certainty that she would be injured. Not that I did something wrong. Not that the law says a fifteen-year-old cannot consent. He has to prove I meant to hurt her, or that I was substantially certain I would. I do not believe the record lets him do that, and below I explain why, using the evidence his own side developed.

I am also going to give you my honest read on where Nagel has some footing, because I would rather you hear it from me than get surprised by it. And I am going to tell you what years of dealing with this man have taught me about how he operates, because I think it bears directly on how this plays out.

One point on her age, because it matters to me

Before anything else, my position has always been that the relationship occurred after B.B. turned sixteen. I understand that everyone else — the Appellate Division, the criminal pleas, certainly Nagel — has treated her as fifteen. I want you to know that in the civil case the merits were never tried, so that "fifteen" has never actually been adjudicated as a fact against me; it has only ever been alleged or assumed. The December 2017 text I discuss below is consistent with my position on the timeline. In the long run I do not think the age question changes the dischargeability analysis either way, because the intent standard is the same regardless. But it matters to me, and I want you operating with my actual position rather than Nagel's version of it.

I will add one further point on this. In the federal criminal case, I raised a challenge through post-conviction counsel to the travel count under 18 U.S.C. § 2423(b), arguing that the Information itself did not allege a crime because the New York trip occurred on August 23, 2017 — three weeks after B.B.'s sixteenth birthday — and the age ceiling under § 2243(a)(1), which defines illicit sexual conduct for purposes of § 2423(b), is sixteen, not seventeen or eighteen. That challenge was filed as a supplemental § 2255 motion. The motion was ultimately not pursued to conclusion, and the conviction stands. I am not asking you to litigate that question. But I want you to know that my position on the facts has been consistent throughout, I acted on it in post-conviction proceedings, and the plea I entered reflected the advice of counsel under circumstances I have always disputed rather than a factual admission that the elements of that charge were met.

The relationship was not what the complaint paints, and the record proves it

B.B. and I were involved for roughly two months in the fall of 2017. That is not my characterization. That is hers, in her own words, written to her sister three days after it ended and long before any lawyer was involved (**Exhibit A**). When her sister asked how long we had been together, she answered, "Like 2 months," and added, "But we didn't even see each other that much." Then, without being asked, she volunteered: "Also I stopped. I said I didn't want to do any of this anymore like a month ago. And that is the truth."

25414	Instant Messages	Incoming		12/4/2017 19:16(UTC-5)	From: +19084489156 Ella Cannon	Where were you	
25415	Instant Messages	Incoming		12/4/2017 19:17(UTC-5)	From: +19084489156 Ella Cannon	And what photos	
25416	Instant Messages	Outgoing		12/4/2017 19:22(UTC-5)	From: +19083702175 Lily	There was one selfie of us	
25417	Instant Messages	Outgoing		12/4/2017 19:22(UTC-5)	From: +19083702175 Lily	Not wearing shirts but you can't actually see anything inappropriate but you can tell	
25418	Instant Messages	Incoming		12/4/2017 19:23(UTC-5)	From: +19084489156 Ella Cannon	Where	
25419	Instant Messages	Outgoing		12/4/2017 19:25(UTC-5)	From: +19083702175 Lily	It was of us standing up. Can't tell where but it was in McTow	
25420	Instant Messages	Incoming		12/4/2017 19:34(UTC-5)	From: +19084489156 Ella Cannon	Like a hotel?	
25421	Instant Messages	Outgoing		12/4/2017 19:36(UTC-5)	From: +19083702175 Lily	Yes, it	
25422	Instant Messages	Incoming		12/4/2017 19:37(UTC-5)	From: +19084489156 Ella Cannon	Ok	
25423	Instant Messages	Outgoing		12/4/2017 19:39(UTC-5)	From: +19083702175 Lily	I'm sorry w	
25424	Instant Messages	Incoming		12/4/2017 19:39(UTC-5)	From: +19084489156 Ella Cannon	I don't understand why	
25425	Instant Messages	Incoming		12/4/2017 19:39(UTC-5)	From: +19084489156 Ella Cannon	How long were u together	
25426	Instant Messages	Outgoing		12/4/2017 19:41(UTC-5)	From: +19083702175 Lily	Like 2 months	
25427	Instant Messages	Outgoing		12/4/2017 19:41(UTC-5)	From: +19083702175 Lily	But we didn't even see each other that much	
25428	Instant Messages	Incoming		12/4/2017 19:42(UTC-5)	From: +19084489156 Ella Cannon	Hmm	
25429	Instant Messages	Outgoing		12/4/2017 19:42(UTC-5)	From: +19083702175 Lily	Also I stopped. I said I don't want to do any of this anymore like a month ago	
25430	Instant Messages	Outgoing		12/4/2017 19:42(UTC-5)	From: +19083702175 Lily	And that is the truth	
25431	Instant Messages	Incoming		12/4/2017 19:42(UTC-5)	From: +19084489156 Ella Cannon	That's good	
25432	Instant Messages	Outgoing		12/4/2017 19:43(UTC-5)	From: +19083702175 Lily	I'm sorry	
25433	Instant Messages	Incoming		12/4/2017 19:43(UTC-5)	From: +19084489156 Ella Cannon	Yeah	
25434	Instant Messages	Incoming		12/4/2017 19:45(UTC-5)	From: +19084489156 Ella Cannon	I really hope ur still not with him	
25435	Instant Messages	Incoming		12/4/2017 19:45(UTC-5)	From: +19084489156 Ella Cannon	When did this start	
25436	Instant Messages	Outgoing		12/4/2017 19:45(UTC-5)	From: +19083702175 Lily	I'm not, I swear. The last time we were together was November 10	
25437	Instant Messages	Outgoing		12/4/2017 19:45(UTC-5)	From: +19083702175 Lily	And that was when I said I don't want to anymore	

Exhibit A — Text exchange, B.B. to her sister, December 4, 2017 (civil discovery)

Read those messages carefully, because they are the most honest thing in the entire record. She describes a short relationship. She says we barely saw each other. And she says she ended it herself, on her own decision. Those are not the words of someone describing an assault she was powerless to escape. They are the words of a teenager describing the end of a relationship she chose to walk away from.

The contemporaneous therapist notes say the same thing in a different register (Exhibits F–H). In early 2018 she told her counselor she only wanted me "to go away for 3-6 months." She was angry at the FBI because, in her words, they "don't like her because she downplayed what happened." Months and years later she was recorded as "still angry at him and still misses him," and as being upset "to remember all the things they did and the places they went." Whatever else those notes show, they do not show a young woman who experienced this as someone deliberately setting out to destroy her.

I am not saying she was not affected. I am not the one to minimize her feelings and I am not going to try. The point is narrower and it is the only point that matters for the intent question: nothing in this record shows that I acted with the purpose of injuring her, or that I was substantially certain I would. And nothing ever will. The record shows the opposite of a predatory campaign. It shows a relationship that, from her own contemporaneous account, she understood as something she participated in and ended on her own terms.

The "she cannot legally consent" argument is true and beside the point

Nagel's entire posture rests on one move, and you should see it coming because he makes it constantly. He says: she was a minor, she cannot consent as a matter of law, therefore consent is irrelevant and the conduct is by definition an injury. He is right about the law of consent in a statutory sense. He is wrong that it answers the question in front of you.

The legal incapacity of a minor to consent is a rule about civil and criminal liability. It is not a finding about what was in my head, or even about what she felt. Teenagers, including teenagers who cannot legally consent, engage in sexual activity of their own volition all the time. The Supreme Court itself has said so. See *Ashcroft v. Free Speech Coalition*, 535 U.S. 234, 247 (2002) ("It is, of course, undeniable that some youths engage in sexual activity before the legal age, either on their own inclination or because they are victims of sexual abuse. Both themes—teenage sexual activity and the sexual abuse of children—have inspired countless literary works... William Shakespeare created the most famous pair of teenage lovers, one of whom is just 13 years of age. In the drama, Shakespeare portrays the relationship as something splendid and innocent, but not juvenile.") (Kennedy, J.). That is the uncomfortable factual reality the statutory rule deliberately papers over, and for good reason in the criminal context. But the intent question does not ask whether she could legally consent. It asks whether I intended to injure her, or was substantially certain I would.

This is the keystone, so let me put it as plainly as I can. The willful-and-malicious standard is met only if I acted with the purpose of injuring her or with substantial certainty that injury would result. Both of those are measured from inside my own head, at the time. And here is the thing nobody can get around: nobody believes they are injuring a willing participant. A person who reasonably understands the other person to be a willing participant does not act with substantial certainty of causing injury, because the perceived willingness is exactly what negates the certainty of harm. That is why her apparent willingness is not a moral defense of what I did — it is direct evidence of my state of mind, which is the only thing the statute actually asks about.

And that is why what Nagel did in her deposition is so revealing. In the civil deposition he physically would not let her answer the consent questions (**Exhibit E**, B.B. Dep. 31:24–32:11; 65:2–3). When my counsel asked "was that consensual," Nagel cut in: "Objection. Hold on... As a matter of law — don't answer that question, Lilly." When the questioning turned to whether she ever said no, he again directed her not to answer, and told the court "She was 15. You can't ask." He called the court and

argued at length that the defense could not be permitted to ask. Think about what that means. The single subject he walled off is the one subject that bears directly on what I would have perceived, and what I would have perceived bears directly on whether I was substantially certain I was causing harm. He did not block those questions to spare her discomfort alone. He blocked them because the answers go to the element he has to prove, and he knows which way they cut. He suppressed the very evidence that bears on my intent. That instinct of his — to bury the factual record behind a legal label — is the tell.

The record on my intent is essentially a clean slate — and that helps us

There is something about the shape of this record you should appreciate, because it is unusual and it favors us. On the question of my subjective intent toward B.B., the record contains my criminal pleas and almost nothing else. On the advice of my criminal counsel, because my criminal matter is on appeal, I declined to testify about the relationship itself at my civil depositions (Exhibits B–D). I answered freely about the businesses, the trusts, the family, and my third-party claims, but on the relationship I asserted the protection my criminal lawyers told me to assert.

The practical consequence is this. The only things on the record about my conduct are the criminal pleas, and those establish the acts, not any intent to injure. There is no statement from me of any purpose to harm her, because I gave none. Meanwhile B.B. was deposed extensively about nearly everything — except the one subject, consent, that her own lawyer walled off. So the evidentiary record on my intent is essentially empty on my side and deliberately incomplete on hers, and the person who created both of those gaps is Nagel: nothing from me he could use, and nothing from her on the subject he blocked. To win nondischargeability he has to prove subjective intent to injure, and he has to do it with a record that contains no direct evidence of it and that he himself made sure would stay that way.

The criminal convictions do not carry the intent he needs

I pleaded guilty to one state count of endangering the welfare of a child, N.J.S.A. 2C:24-4(a)(1) (which is being litigated for ineffective-assistance issues right now), and two federal counts: receipt of child pornography, 18 U.S.C. §2252A(a)(2), and travel with intent to engage in illicit sexual conduct, 18 U.S.C. §2423(b). I have served my time for those. But I want you to see clearly what those pleas did and did not establish, because Nagel will wave them around as if they settle everything.

None of those statutes required anyone to prove I intended to injure B.B. Section 2C:24-4(a)(1) turns on engaging in conduct that would impair or debauch the morals of a child — it is about the nature of the conduct, not an intent to cause her psychological harm. Section 2252A(a)(2) turns on knowing receipt of the images. Even §2423(b), the one with "intent" in it, requires intent to engage in sexual conduct, not intent to injure. Every one of those offenses can be committed by someone who never formed any purpose to harm the other person at all. That distinction is exactly the one the bankruptcy courts have drawn: where the underlying statute does not require proof of intent to injure, the conviction cannot supply the willful-and-malicious element by collateral estoppel. See *In re Long*, 528 B.R. 655 (Bankr. W.D. Va. 2015); *Lewis v. Long*, 550 B.R. 294 (W.D. Va. 2016); *In re BASL* (Bankr. E.D. Va. 2018). A conviction that does not require proof of intent to injure cannot manufacture that intent after the fact, and the court is "not permitted to infer such elements solely based on the public policy considerations underlying the antecedent action."

The damages were already measured, and the number is small

Here is a point I think helps you on determining the value of this claim, separate from the intent question. At my federal sentencing I paid \$80,000 in restitution. Federal restitution in these cases is specifically designed to cover the full amount of the victim's losses, and that expressly includes the cost of her psychiatric and psychological care, including care reasonably projected into the future. The government consulted with her and her family, prepared the restitution figure, and the court set it at \$80,000 to make her whole for the cost of treating the harm she suffered.

That number is a useful anchor. If \$80,000 was found sufficient to cover the full cost of her psychological and psychiatric care, including future care, then it becomes very hard to argue that her emotional and mental damages are enormous. The one objective, court-tested figure in this entire record for the cost of her total past and future economic injuries is \$80,000. That matters because Nagel has asserted, consistently for seven years, that this case is worth \$10 million. Set those two numbers side by side. A federal court, after the government consulted with B.B. and her family, determined after full process that \$80,000 covers the full cost of treating her harm for life. Nagel intends to walk into the bankruptcy proceeding and assert a claim roughly one hundred and twenty-five times that figure. When the trustee evaluates a disputed claim, hopefully that spread invites exactly the scrutiny it deserves.

I raised a version of this in state court already. I filed a motion in limine arguing that the federal proceeding had already addressed the compensable harm. The judge denied it without prejudice to renew closer to trial, so it was never decided on the merits, but the

argument is teed up and it is a live one. To the extent Nagel hopes to inflate the claim toward his \$10 million number, he is mostly hoping for punitive damages, and those are constitutionally capped against the compensatory anchor. Against an established figure of \$80,000, even an aggressive punitive multiple does not get him anywhere close to \$10 million. I leave the precise mechanics to you, but the trustee should understand that the figure Nagel has been repeating for seven years has almost nothing under it.

The parents' conduct independently caps the claim value further — and a state court judge has already said so

There is a dimension to this case that I do not think Nagel has fully reckoned with, and I want you to have it because it bears directly on how you evaluate his \$10 million demand.

Lilly's parents — identified in the civil case as D.D. (Mother) and E.E. (Father); their names are Laura and Tony — are third-party defendants in the state case. I filed a third-party complaint against them in August 2023, asserting contribution and indemnification under the New Jersey Child Sexual Abuse Act, N.J.S.A. 2A:61B-1 et seq., and the Joint Tortfeasors Contribution Law, N.J.S.A. 2A:53A-1 et seq. The brief and responsive statement of facts from that proceeding are attached as Exhibits K and L. What they establish is not a sideshow. It is a direct challenge to the value of Nagel's claim. And crucially, on May 15, 2026, Judge Gardner heard oral argument on cross-motions for summary judgment and issued a bench ruling — attached as Exhibit M — that sends Laura and Tony to trial on the contribution and indemnification claims.

Before Lilly — identified in the civil case as B.B. — had any relationship with me whatsoever, her parents knew I had been involved with their older daughter, Ella, identified in the civil case as C.C. They discovered that relationship in February 2016 and admitted in sworn testimony that they knew it was sexual in nature and involved "inappropriate things." (Exhibit K, Preliminary Statement; Exhibit L, ¶1–7.) A reasonable parent severs every tie. Laura and Tony did the opposite. Laura arranged a private meeting with me at the Essex Hunt Club, consoled me, accepted my apology, and agreed to keep the matter quiet — without contacting the police or seeking any legal protection whatsoever. (Exhibit L, ¶8–10.)

From that moment forward, rather than building a wall between me and their younger daughter, they spent the next eighteen months actively facilitating access. In April 2016, Lilly and her younger sister discovered explicit messages and photographs on Ella's phone and immediately brought them to Laura. Laura refused to look at the

evidence and returned the phone to Ella. (Exhibit L, ¶12–14.) In May 2016, Lilly herself approached Laura at a pre-prom party and explicitly warned her that I was "following [her] around" and acting "weird." Laura and Tony dismissed her concern and continued socializing with me at that same event. (Exhibit L, ¶15–16.) That warning — from their own daughter, in real time — was ignored.

Over the following sixteen months the record documents what their acquiescence looked like in financial terms. Laura and Tony accepted private jet flights for their entire family to Maine for a college move-in and again for parents' weekend, and a helicopter extraction from New York City piloted by me after a shopping trip I paid for. (Exhibit L, ¶19(a)–(d); Tr. 12:1–6, May 15, 2026.) They accepted two brokerage accounts I funded with \$25,000 each — one for Laura, one for Ella. (Exhibit L, ¶22.) They accepted my sponsorship of their admission to the Essex Hunt Club. (Exhibit L, ¶23.) They accepted tickets to sold-out Garth Brooks and Zac Brown Band concerts. (Exhibit L, ¶24.) Laura also served as the listing agent for my condominium and collected a commission split. (Exhibit L, ¶25.) Critically, with full knowledge of what they themselves characterized as an inappropriate situation with Ella, they permitted me to fund and facilitate Lilly's private flying lessons at the Somerset Airport, granting me unsupervised access to their younger daughter. (Exhibit L, ¶26; Tr. 13:3–6, May 15, 2026.) They even allowed Lilly and her younger sister to sit alone with me in the cockpit of a private aircraft. (Exhibit L, ¶19(e).) The record supports a conservative estimate of over \$200,000 in cash and in-kind benefits Laura and Tony extracted from me during the period when they were simultaneously facilitating my access to their daughters.

Then, on July 27, 2017 — in close proximity to when Lilly says the sexual relationship with me began — Laura received a \$25,000 direct wire into her personal Chase account, an account opened just four weeks before the deposit arrived. (Exhibit L, ¶21; Tr. 12:7–9, May 15, 2026.) I noted to the court that the wire was made on the phone with Laura and Ella on speaker, with Laura providing her account number. (Tr. 30:19–25, May 15, 2026.) The financial record also shows that after Patrick Whalen filed a motion to compel production of the Chase statements, Laura transferred \$25,000 back into that account in December 2022, and then immediately paid \$25,000 to her own attorney in May 2023. (Exhibit K, Statement of Facts, Section V; Tr. 12:8–21, May 15, 2026.)

What makes this independently significant to Lilly's claimed emotional harm is what Laura did when Lilly began seeing a therapist, Dr. Robinson, in August 2017. Rather than supporting her daughter's treatment, Laura interrogated Lilly about what she had

disclosed. Her concern was not Lilly's wellbeing; it was financial exposure. She sent Lilly text messages asking pointedly whether she had told the doctor "who was paying" for the flying lessons. (Exhibit L, ¶28.) When Lilly confirmed she had, Laura expressed surprise that the doctor "thought it was fine." (Exhibit L, ¶28.) Lilly's response to her mother was: "I'm so confused." (Exhibit L, ¶29.) That is a mother who, rather than helping her daughter process what she was experiencing, was managing her own legal exposure — and in doing so generating independent emotional harm to a child who was already confused and vulnerable.

The cover-up that followed is documented in equal detail. In October 2017, a fellow parent contacted Laura directly to report that Lilly's friends had discovered illicit text messages linking her to me. Laura did nothing. (Exhibit L, ¶31–33.) When the school finally notified the parents on December 4, 2017, they did not go to law enforcement — they retained counsel and opened a settlement channel, demanding \$10 million from me before they would cooperate with investigators. (Exhibit L, ¶47–49.) Text messages from that period explicitly state that pursuing criminal charges would force me to "respond very quickly and more favorably" to their financial demands. (Exhibit L, ¶50.) Laura and Tony delayed Lilly's forensic interview with law enforcement for seventeen days while that negotiation played out. (Exhibit L, ¶43.) During that window, Laura instructed Lilly via text to "delete Snapchat" — destroying the digital record of the relationship — and told her "whatever you do, don't discuss any details of your relationship with anyone" and to "not admit" anything. (Exhibit L, ¶50–54.)

The Mother's November 19, 2017 text to Lilly is perhaps the most revealing document in the entire record. Laura wrote: "I also think he's ready to be done with us. Not get rid of B.B., but done with us, a family unit." (Tr. 13:17–19, May 15, 2026.) I pointed out to the court that the text did not come from a mother who was deceived — it came from a mother who understood exactly what was at stake, and it was not her daughter's safety. (Tr. 13:21–23, May 15, 2026.)

Judge Gardner denied both cross-motions for summary judgment on May 15, 2026, and sent the contribution and indemnification claims to trial. In doing so, he made three findings directly relevant to what you will face in the bankruptcy proceeding. First, on the CSAA acquiescence question: "There's a substantial issue of operative fact here as to whether the parents in fact acquiesced here. And as I said, it may not be direct evidence, but there certainly is circumstantial evidence to at least make an argument of the reasonable inferences against the movant that, in fact, they may have acquiesced in this case." (Tr. 33:20–25, 34:1–2.) Second, on parental immunity: "I don't think that — certainly, the argument here would be that what happened here

certainly does not fall within parental authority — or provision of customary child care." (Tr. 34:11–14.) Third, on willful and wanton conduct: "Whether in fact this rises to the level of willful or wanton I think is a jury question." (Tr. 34:22–23.) A state court judge with seven years of familiarity with this record has now determined that a jury could reasonably find Laura and Tony acquiesced in the conduct, that their behavior falls outside the protection of parental immunity, and that the question of willful and wanton disregard is a jury issue. That is the posture of the third-party claim going into any proceeding that touches the value of Nagel's demand.

The legal consequence, which I leave entirely to your judgment to deploy or hold, is this: under New Jersey's Joint Tortfeasors Contribution Law, Laura and Tony are jointly and severally liable for the indivisible harm Lilly allegedly suffered to the extent their conduct contributed to it. My position — supported by the record and now validated by a state court ruling — is that they are at minimum fifty percent contributorily liable, and arguably more. They possessed actual knowledge of my history with Ella for approximately five hundred days before Lilly's relationship with me began. (Exhibit L, ¶4, 20.) During that entire window they had the absolute power to end it before it started. Instead they took the money, facilitated the access, delayed the investigation, destroyed the evidence, and then demanded \$10 million. The confusion, the gaslighting in therapy, the instructions to delete evidence, the 17-day delay while they negotiated a payout: none of that is attributable to me. Either way, the number that actually lands on me is a fraction of what Nagel has been advertising for seven years. The gap between his \$10 million and the federal restitution figure of \$80,000 becomes even more stark when you factor in that Laura and Tony absorb a substantial share of whatever sits in between.

They just violated the bankruptcy stay — and they did it with full knowledge

I need to put something in front of you that happened just days ago, because it tells you everything about how far out of their depth Nagel Rice is in this forum. On Thursday, June 18, 2026, Michael Paragano of Nagel Rice emailed me directly (Exhibit I):

Exhibit I — Email, M. Paragano (Nagel Rice) to S. Bradley Mell, June 18, 2026, 4:58 p.m.

He advised me that "our prejudgment attachment includes any and all vehicles in your possession, including, but not limited to the 1995 Ferrari that you testified to owning during your deposition," and instructed me that "you should not undertake any efforts to remove the vehicle from the state." He sent this to me directly. I am obviously a

represented debtor in an active Chapter 7. He was plainly asserting continued control over property of the estate and directing my conduct over it.

From everything I understand, the moment I filed my petition the automatic stay went into effect, and it bars exactly this kind of thing — any act to exercise control over estate property or to enforce a pre-petition attachment, and any direct collection contact with me. I understand a willful violation of that stay exposes the violator to actual damages, including the attorney's fees I incur in dealing with it, and potentially to punitive damages and the court's contempt power. I will defer to you completely on whether and how to pursue a remedy. But I would genuinely like to pursue something, if for no other reason than to make sure the trustee and the bankruptcy court are fully aware of this, because it speaks directly to their credibility in front of the very people who will weigh their inflated claim.

And here is the part that removes any possibility this was an innocent mistake. Your partner Sari Placona spoke directly with Paragano on June 15. He confirmed to her that even Judge Gardner acknowledged my bankruptcy filing on the record. So as of June 15, Paragano had actual, admitted knowledge of the bankruptcy. Three days later, on June 18, he sent me this email anyway. He did not stumble into this unaware. He knew about the filing, admitted he knew, and then violated the stay regardless. As I understand it, willfulness in this context just means they knew of the stay and intended the act, and they have essentially conceded both.

There is an irony in it too. The attachment he is trying to enforce is a prejudgment attachment from the state case — the same case that was dismissed by the Zunic order, in which, as you noted to me, no order was declared to survive the dismissal. So he violated a federal bankruptcy stay in order to enforce a prejudgment attachment from a dismissed case. The conduct is wrong twice: wrong to contact me at all given the stay and my representation, and questionable on whether that attachment even still binds anything.

I want to be blunt about why this gets under my skin, beyond the legal violation. For years, any time I committed the smallest infraction despite being pro se with no civil court experience, Nagel ran to Judge Gardner and asked for sanctions. They froze one hundred percent of my assets under the attachment, including my ERISA-protected retirement funds that should never have been touchable in the first place. When I asked the court to release enough of my own money to live on, they opposed it and got me sanctioned \$8,000 for asking. Because of that freeze I have not even been able to move my ERISA-protected funds into my 401(k) where they could grow — and given the bull market we have had, that is potentially a great deal of lost

opportunity. That is the standard they held me to. And now, with admitted knowledge of a federal bankruptcy stay, they fire off an email asserting control over my car and ordering me not to move it — an asset which I understand is now in the legal custody of the trustee anyway. The firm that ran to the judge over every minor thing I did just committed one of the most basic violations there is. This is something a second-year law student knows not to do. It is, frankly, a window into how unprepared they are for the forum they are now in.

The parents' pseudonymity may not carry into federal court — and I am asking you to assess and raise it

There is a procedural issue I want to flag and ask you to assess, because I believe Nagel will simply assume it resolves itself and act accordingly.

In the state case, Laura and Tony have litigated from the beginning under the pseudonyms D.D. and E.E. The basis for that anonymity has been that identifying them would effectively identify Lilly, who is herself protected. That argument was accepted in state court, and they have used it throughout the litigation as a shield — hiding their own conduct and identity behind their daughter's privacy interest.

My understanding from civil and criminal federal practice is that federal court applies a meaningfully stricter standard. In the Third Circuit, the default rule is that parties proceed under their real names. See Fed. R. Civ. P. 10(a). Departure from that default requires the court's affirmative authorization, and the controlling standard in civil and criminal federal proceedings is set out in *Doe v. Megless*, 654 F.3d 404 (3d Cir. 2011). Under *Megless*, a party seeking to proceed anonymously must demonstrate that the interest in privacy outweighs the public's presumptive right to know who is litigating in federal court. Embarrassment, social stigma, and reputational harm — even serious reputational harm — are generally insufficient. The parents' derivative argument — that identifying them identifies Lilly — does not automatically satisfy that standard, particularly where Lilly herself can remain protected under a separate pseudonym, which I expect any federal court to order as a matter of course. What I do not know, and what I am asking you to assess, is whether the bankruptcy court applies the same or an equivalent standard in adversary proceedings, or whether a separate framework governs anonymity in that context.

My expectation is that Nagel will not think about this carefully. His pattern, which the Paragano email illustrates perfectly, is to assume that what worked in state court controls everywhere else. He will almost certainly file whatever he files in *In re Mell*, CA-26-16834, simply using D.D. and E.E. without seeking leave of the bankruptcy

court, on the assumption that the state court's practice carries over automatically. If the federal standard applies in any form in the bankruptcy court, that assumption is almost certainly wrong. Leave would be required, and the standard for obtaining it is higher than what the state court applied.

I am strongly asking you to raise this at the appropriate time if you conclude the federal standard applies here. Forcing Laura and Tony to litigate under their real names in a federal proceeding has real consequences for how this plays out. It removes the shield of anonymity from people whose conduct — as the attached exhibits document, and as a state court judge has now confirmed warrants a jury — was commercially calculated and deliberately concealed. It puts their names on a public federal docket alongside the facts in my third-party complaint. And it removes one of the tactical advantages Nagel has relied on throughout this litigation: the ability to present his clients as faceless, sympathetic guardians rather than as the architects of the arrangement the record actually describes. I leave the timing and the precise vehicle entirely to your judgment. But I wanted to flag it now, because if Nagel files without seeking leave, the moment to raise it will come early.

Where Nagel actually has some footing — so you are not surprised

I am not going to pretend our position is airtight. Here is where I think he has his best shots, and what I think the answer is.

His strongest single point is the assault and battery count. The summary judgment was granted on it, and the complaint pleaded that my acts were "intentional and designed to cause harmful and offensive contact." He could argue that battery is an intentional tort and that intent to cause harmful contact is the same as intent to injure. There are two things you should know before you hear that argument from him.

First, the summary judgment on this count was a discovery sanction. Judge Gardner's ruling was procedural, based on my assertion of Fifth Amendment rights during civil discovery while my criminal appeal was pending. It made no factual finding whatsoever about what I intended. There was no testimony taken, no merits analysis, and no adjudication that I acted with intent to harm. The Appellate Division's own opinion confirmed that the summary judgment was entered under those procedural circumstances. That distinction matters enormously in front of a bankruptcy court, which must find willful and malicious injury based on actual evidence of subjective intent — not on a sanction order that deliberately bypassed the merits entirely.

Second, both civil assault and battery require elements that Nagel cannot establish on this record. Battery requires harmful or offensive contact — contact that is unwanted. Assault requires that the plaintiff be placed in apprehension of imminent harmful or offensive contact. A person who is a willing participant is not in fear. A person who is anticipating and welcoming contact is not in apprehension of it. Lilly's own contemporaneous account — in Exhibit A — describes a two-month relationship she understood herself to be participating in and that she chose to end on her own terms. Whatever the statutory rule says about legal capacity to consent, her apparent willingness bears directly on whether the essential elements of civil assault and battery — unwanted contact and reasonable apprehension — can actually be proven on the merits. Those elements have never been tested, because the summary judgment that purports to establish them never reached the merits. That is Nagel's problem, not mine.

His second point is the federal travel plea, because of the word "intent." In a room with a judge, "he traveled across state lines to have sex with a fifteen-year-old" has emotional force whatever the technical law says. The answer is the one above — intent to engage in conduct is not intent to injure — but I know that can feel like a fine distinction in the moment. It helps that criminal mens rea in these statutes attaches to the act, not to any later injury; the crime is provable regardless of whether injury was actually sustained, which is exactly why the conviction proves the act and not the intent to harm.

His third point is the expert, Dr. Hughes (referenced; full report available on request). Her report is serious and sympathetic and documents years of real suffering — although it is notably one-sided and never untangles how much of that suffering traces to conduct other than mine, including a separate assault Lilly has testified she suffered and the role her own parents played in this. The thing I would point out is that nowhere in it does she say I intended to cause that harm. She describes harm that resulted from the conduct. She uses the word grooming, but that describes building trust and access, not a purpose to cause injury. She can arguably establish the harm is real. She cannot say what was in my mind, and she does not try to. Still, in front of a judge who is also a human being, the weight of that report is the hardest thing we face, and I want to be honest with you that it is.

My read on Nagel, for whatever it is worth to you

I have watched this man litigate against me for years, and I want to give you my honest read, because it matters to how this unfolds. Bruce Nagel is a narcissist. He runs on theatrical optics and he wins by inflaming the passions and prejudices of

whoever is making the decision. In state court, with a sympathetic victim and a sex-offender defendant, that approach worked, because the forum rewarded it. He has come to believe he does not need help and cannot be outmaneuvered.

That hubris shows up in how he built the civil case, and it is genuinely instructive. Rather than pursue me cleanly and then deal with collection, he sued every entity in sight, named legally formed trusts (and even my children) as if they were my piggy bank, misunderstood how corporate ownership and shareholder liability work, and even tried to attach corporate assets as though they were my personal property. He sued the entities for negligence and collected what were plainly nuisance settlements. A more disciplined lawyer would have gone after me directly and worried about piercing veils later, if at all. He did not, because the sprawling approach generated activity, billing, and the appearance of aggression. It was theater.

Why this matters for you: a case like mine, in bankruptcy, is precisely where his weaknesses become dangerous to him and where a seasoned bankruptcy specialist would be worth every penny. The points where we are exposed — the battery count, the expert, the emotional weight — are exactly the points a specialist would press hardest and sequence carefully. But reading the tea leaves from how he has run this case for years, my honest expectation is that Nagel will believe he can handle the bankruptcy side himself, the way he believed he could handle everything else. The Paragano email is the first piece of hard evidence that this is exactly what is happening. A firm with competent bankruptcy counsel does not send a represented debtor a direct email enforcing a dismissed-case attachment three days after admitting it knew about the bankruptcy filing. I think he will overvalue his own case, lean on the moral optics that carried him in state court, and underestimate how different this forum is. That is not a prediction I would bet the firm on, but it is my genuine read, and the stay violation suggests it is already coming true.

Bottom line

I am not trying to relitigate what I did. I am trying to give you the truest possible picture of what the record actually shows, so that whatever path you choose, you are choosing it with full command of the facts I have spent years living inside. The intent-to-injure standard is a high one. The contemporaneous record does not support it. The consent evidence Nagel buried goes straight to whether I could have been substantially certain of causing injury, and he buried it for a reason. The record on my own intent is essentially a clean slate. The damages were already measured at a modest number. Laura and Tony's conduct independently accounts for a substantial share of whatever damages exist — and a state court judge has now confirmed that

question goes to a jury. And the man on the other side has a long track record of overplaying his hand.

Tell me what you need from me and I will get it to you. Everything I reference is attached and tabbed so you do not have to dig through thousands of pages. Whatever you decide to do with it, the facts are on our side here, and I wanted you to have them in one place and in plain terms.

With appreciation and respect,

Brad

Privileged and confidential attorney-client communication. The civil-case materials referenced and attached were produced under a confidentiality and sealing order in ESX-L-7200-19. The effect of the June 12, 2026 dismissal order on that seal is unsettled; if any of this is ever placed before the bankruptcy court, it should be submitted under seal.

EXHIBIT INDEX

Exhibit A. Text Exchange — B.B. to Sister, December 4, 2017

B.B.'s own contemporaneous account, sent before any lawyer was involved, describing the relationship as roughly two months, noting they "didn't even see each other that much," and stating she ended it herself a month earlier ("I stopped... and that is the truth").

Exhibit B. Deposition of S. Bradley Mell — September 22, 2021

Debtor's civil deposition. Establishes that, on advice of criminal counsel pending appeal, the debtor declined to testify about the relationship, leaving no on-record statement of intent toward B.B.

Exhibit C. Deposition of S. Bradley Mell — July 27, 2023

Debtor's continued civil deposition, focused largely on the business entities and trusts; debtor again declined to answer questions concerning the plaintiff.

Exhibit D. Deposition of S. Bradley Mell — August 22, 2025

Debtor's further civil deposition. Confirms the debtor's repeated, counsel-advised refusal to testify about the sexual relationship with B.B. given the pending criminal appeal, and documents the Cannon family's continued voluntary association with the debtor.

Exhibit E. Deposition of B.B. — September 24, 2021

Plaintiff's deposition. Contains the colloquy in which plaintiff's counsel (Nagel) objected and directed the witness not to answer any question concerning consent (Tr. 31:24–32:11; 65:2–3), suppressing the testimony most relevant to the debtor's perception and intent.

Exhibit F. Medical/Counseling Records — Dr. Bradley Robinson

Contemporaneous treatment records reflecting, among other things, B.B.'s statements that she wanted the matter resolved with limited consequence and that she "downplayed what happened."

Exhibit G. Medical Records — Dr. Cowen/Hune (March 2020)

Additional treatment records bearing on the nature, sources, and course of B.B.'s reported distress.

Exhibit H. Medical Records — Somerset/Robinson

Further treatment records relevant to the measurement and attribution of B.B.'s claimed psychological injuries.

Exhibit I. Email — M. Paragano (Nagel Rice) to S. Bradley Mell, June 18, 2026

Direct communication to the represented debtor asserting a prejudgment attachment over the debtor's vehicle and directing his conduct over estate property — sent three days after Nagel Rice admitted knowledge of the bankruptcy filing.

Exhibit J. Deposition of Laura Cannon

Mother's deposition, relevant to the open and integrated nature of the families' relationship and the broader factual context bearing on the debtor's state of mind.

Exhibit K. Third-Party Plaintiff's Brief in Support of Motion for Summary Judgment (ESX-L-7200-19)

Brad's pro se summary judgment brief against Laura and Tony (D.D. and E.E.), documenting the 500-day facilitation window, over \$200,000 in benefits extracted, the December 2017 cover-up, and the legal basis for contribution and indemnification under the CSAA and JTCL.

Exhibit L. Responsive Statement of Material Facts — Third-Party Proceeding (ESX-L-7200-19)

Supporting statement of material facts with record citations, establishing Laura and Tony's chronological knowledge, financial benefit, and conduct bearing on comparative fault and claim valuation.

Exhibit M. Transcript of Oral Argument and Bench Decision, B.B. v. Mell, ESX-L-7200-19 (Hon. Robert H. Gardner, J.S.C., May 15, 2026)

Court transcript reflecting Judge Gardner's denial of both cross-motions for summary judgment, his finding that Laura and Tony's conduct does not fall within the provision of customary child care protected by parental immunity, and his ruling that the question of willful and wanton conduct — and CSAA acquiescence — are jury questions. Laura and Tony proceed to trial on the contribution and indemnification claims.